

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER		PAGE 1 OF 62	
2. CONTRACT NO.		3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER		5. SOLICITATION NUMBER 693JF726R000009		6. SOLICITATION ISSUE DATE
7. FOR SOLICITATION INFORMATION CALL:		a. NAME HENRY PUPPE			b. TELEPHONE NUMBER (No collect calls) 202-493-8977		8. OFFER DUE DATE/LOCAL TIME 1700 ET
9. ISSUED BY US DOT MARITIME ADMINISTRATION OFFICE OF ACQUISITION MAR-380 1200 NEW JERSEY AVENUE SE MAIL STOP W-28-201 WASHINGTON DC 20590-0001				CODE 693JF7	10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) 488390 ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A) SIZE STANDARD: \$47		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☒ REQUEST FOR PROPOSAL (RFP)	
15. DELIVER TO See Schedule		CODE MARAD-00091-MAR-610		16. ADMINISTERED BY See Schedule		CODE 693JF7	
17a. CONTRACTOR/ OFFEROR		CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY			
TELEPHONE NO.		☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	ADMINISTERED BY: US DOT MARITIME ADMINISTRATION OFFICE OF ACQUISITION MAR-380 1200 NEW JERSEY AVENUE SE MAIL STOP W-28-201 WASHINGTON DC 20590-0001 USA DELIVER TO: US DOTMARITIME ADMINISTRATION OFFICE OF SHIP OPERATIONS 1200 NEW JERSEY AVENUE SE Continued ... (Use Reverse and/or Attach Additional Sheets as Necessary)						
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Government Use Only)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED.	
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED.	
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.				☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED	
				Ken Egbuna			

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19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	MAR-610 WASHINGTON DC 20590-0001 USA Period of Performance: 04/15/2026 to 04/14/2027				
00001	Base Year 5-yr WATKINS West Coast Period of Performance: 04/15/2026 to 04/14/2027				
00002	Berthage - Per Diem Period of Performance: 04/15/2026 to 04/14/2027				
00003	Security Period of Performance: 04/15/2026 to 04/14/2027				
00004	Connect Cycle Period of Performance: 04/15/2026 to 04/14/2027				
00005	Disconnect Cycle Period of Performance: 04/15/2026 to 04/14/2027				
00006	Electrical Service - Reimbursable electrical power usage. Utility company _____exempts _____ will not exempt taxes from electric service charges (check one) Continued ...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT			42a. RECEIVED BY (<i>Print</i>)	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		41c. DATE	42b. RECEIVED AT (<i>Location</i>)	
			42c. DATE REC'D (YY/MM/DD)	42d. TOTAL CONTAINERS

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ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Period of Performance: 04/15/2026 to 04/14/2027				
00007	Water and Sewage Services				
	Period of Performance: 04/15/2026 to 04/14/2027				
00008	Opt 1 Year 5-yr WATKINS West Coast				
	Period of Performance: 04/15/2027 to 04/14/2028				
00009	Berthage - Per Diem				
	Period of Performance: 04/15/2027 to 04/14/2028				
00010	Security				
	Period of Performance: 04/15/2027 to 04/14/2028				
00011	Connect Cycle				
	Period of Performance: 04/15/2027 to 04/14/2028				
00012	Disconnect Cycle				
	Period of Performance: 04/15/2027 to 04/14/2028				
00013	Electrical Service - Reimbursable electrical power usage. Utility company _____exempts _____ will not exempt taxes from electric service charges (check one)				
	Period of Performance: 04/15/2027 to 04/14/2028				
00014	Water and Sewage Services				
	Period of Performance: 04/15/2027 to 04/14/2028				
00015	Opt 2 Year 5-yr WATKINS West Coast				
	Period of Performance: 04/15/2028 to 04/14/2029				
00016	Berthage - Per Diem				
	Period of Performance: 04/15/2028 to 04/14/2029				
00017	Security				
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ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Period of Performance: 04/15/2028 to 04/14/2029				
00018	Connect Cycle				
	Period of Performance: 04/15/2028 to 04/14/2029				
00019	Disconnect Cycle				
	Period of Performance: 04/15/2028 to 04/14/2029				
00020	Electrical Service - Reimbursable electrical power usage. Utility company _____exempts _____ will not exempt taxes from electric service charges (check one)				
	Period of Performance: 04/15/2028 to 04/14/2029				
00021	Water and Sewage Services				
	Period of Performance: 04/15/2028 to 04/14/2029				
00022	Opt 3 Year 5-yr WATKINS West Coast				
	Period of Performance: 04/15/2029 to 04/14/2030				
00023	Berthage - Per Diem				
	Period of Performance: 04/15/2029 to 04/14/2030				
00024	Security				
	Period of Performance: 04/15/2029 to 04/14/2030				
00025	Connect Cycle				
	Period of Performance: 04/15/2029 to 04/14/2030				
00026	Disconnect Cycle				
	Period of Performance: 04/15/2029 to 04/14/2030				
00027	Electrical Service - Reimbursable electrical power usage. Utility company _____exempts _____ will not exempt taxes from electric service charges (check one)				
	Period of Performance: 04/15/2029 to 04/14/2030				
	Continued ...				

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ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
00028	Water and Sewage Services Period of Performance: 04/15/2029 to 04/14/2030				
00029	Opt 4 Year 5-yr WATKINS West Coast Period of Performance: 04/15/2030 to 04/14/2031				
00030	Berthage - Per Diem Period of Performance: 04/15/2030 to 04/14/2031				
00031	Security Period of Performance: 04/15/2030 to 04/14/2031				
00032	Connect Cycle Period of Performance: 04/15/2030 to 04/14/2031				
00033	Disconnect Cycle Period of Performance: 04/15/2030 to 04/14/2031				
00034	Electrical Service - Reimbursable electrical power usage. Utility company _____exempts _____ will not exempt taxes from electric service charges (check one) Period of Performance: 04/15/2030 to 04/14/2031				
00035	Water and Sewage Services Period of Performance: 04/15/2030 to 04/14/2031				
00071	Cumulative 5-year total for WATKINS West Coast				
00072	Base Year 5-yr RED CLOUD West Coast Period of Performance: 04/15/2026 to 04/14/2027				
00073	Berthage - Per Diem Period of Performance: 04/15/2026 to 04/14/2027 Continued ...				

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ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
00074	Security Period of Performance: 04/15/2026 to 04/14/2027				
00075	Connect Cycle Period of Performance: 04/15/2026 to 04/14/2027				
00076	Disconnect Cycle Period of Performance: 04/15/2026 to 04/14/2027				
00077	Electrical Service - Reimbursable electrical power usage. Utility company _____exempts _____ will not exempt taxes from electric service charges (check one) Period of Performance: 04/15/2026 to 04/14/2027				
00078	Water and Sewage Services Period of Performance: 04/15/2026 to 04/14/2027				
00079	Opt 1 Year 5-yr RED CLOUD West Coast Period of Performance: 04/15/2027 to 04/14/2028				
00080	Berthage - Per Diem Period of Performance: 04/15/2027 to 04/14/2028				
00081	Security Period of Performance: 04/15/2027 to 04/14/2028				
00082	Connect Cycle Period of Performance: 04/15/2027 to 04/14/2028				
00083	Disconnect Cycle Period of Performance: 04/15/2027 to 04/14/2028				
00084	Electrical Service - Reimbursable electrical power usage. Utility company _____exempts _____ will not exempt taxes from electric service charges (check one) Continued ...				

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ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Period of Performance: 04/15/2027 to 04/14/2028				
00085	Water and Sewage Services				
	Period of Performance: 04/15/2027 to 04/14/2028				
00086	Opt 2 Year 5-yr RED CLOUD West Coast				
	Period of Performance: 04/15/2028 to 04/14/2029				
00087	Berthage - Per Diem				
	Period of Performance: 04/15/2028 to 04/14/2029				
00088	Security				
	Period of Performance: 04/15/2028 to 04/14/2029				
00089	Connect Cycle				
	Period of Performance: 04/15/2028 to 04/14/2029				
00090	Disconnect Cycle				
	Period of Performance: 04/15/2028 to 04/14/2029				
00091	Electrical Service - Reimbursable electrical power usage. Utility company _____exempts _____ will not exempt taxes from electric service charges (check one)				
	Period of Performance: 04/15/2028 to 04/14/2029				
00092	Water and Sewage Services				
	Period of Performance: 04/15/2028 to 04/14/2029				
00093	Opt 3 Year 5-yr RED CLOUD West Coast				
	Period of Performance: 04/15/2029 to 04/14/2030				
00094	Berthage - Per Diem				
	Period of Performance: 04/15/2029 to 04/14/2030				
00095	Security				
	Continued ...				

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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Period of Performance: 04/15/2029 to 04/14/2030				
00096	Connect Cycle				
	Period of Performance: 04/15/2029 to 04/14/2030				
00097	Disconnect Cycle				
	Period of Performance: 04/15/2029 to 04/14/2030				
00098	Electrical Service - Reimbursable electrical power usage. Utility company _____exempts _____ will not exempt taxes from electric service charges (check one)				
	Period of Performance: 04/15/2029 to 04/14/2030				
00099	Water and Sewage Services				
	Period of Performance: 04/15/2029 to 04/14/2030				
00100	Opt 4 Year 5-yr RED CLOUD West Coast				
	Period of Performance: 04/15/2030 to 04/14/2031				
00101	Berthage - Per Diem				
	Period of Performance: 04/15/2030 to 04/14/2031				
00102	Security				
	Period of Performance: 04/15/2030 to 04/14/2031				
00103	Connect Cycle				
	Period of Performance: 04/15/2030 to 04/14/2031				
00104	Disconnect Cycle				
	Period of Performance: 04/15/2030 to 04/14/2031				
00105	Electrical Service - Reimbursable electrical power usage. Utility company _____exempts _____ will not exempt taxes from electric service charges (check one)				
	Continued ...				

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
00106	Period of Performance: 04/15/2030 to 04/14/2031 Water and Sewage Services				
00142	Period of Performance: 04/15/2030 to 04/14/2031 Cumulative 5-year total for RED CLOUD West Coast				

SECTION B - SUPPLIES / SERVICES AND PRICE

2.1 Requirement Summary: The Contractor shall provide exclusive long-term lay berthing for up to two Watson class LMSR RRF vessels on the U.S. West Coast.

Government may substitute vessels of similar size or smaller.

2.2 CLINs & Pricing (Fill in CLIN table in Attachment SF-1449):

See solicitation form for a complete list of CLINS.

2.3 Per-diem Includes: All items in SOW Section C and H.4 unless explicitly noted as reimbursable in Section C-14.

2.4 The resulting contract will be a 5- year IDIQ, fixed-price/ cost-reimbursement, award.

2.5 Per-diem rates shall include all costs associated with meeting section C except those listed as reimbursables in section C-14.

2.6 Offerors shall provide pricing for all FFP CLINS to be eligible for award for either the 5-year periods.

2.7 All proposals shall be for a 5-year period.

2.8 The government reserves the right to substitute vessels for a similar size or smaller at any point in the solicitation, and thereafter.

2.9 MARAD reserves the right to procure berthing for either one, or two vessels under this solicitation.

SECTION C – Statement of Work

C-1 INTRODUCTION AND BACKGROUND

The Maritime Administration (MARAD) requires services for the exclusive long-term safe layberthing for up to two (2) WATSON CLASS LMSR RRF vessels, TRAVIS E WATKINS and MITCHELL RED CLOUD on the U.S. West Coast. Although the layberths are intended for the vessels identified in this solicitation, the Government may substitute vessels of a similar size or smaller.

C-2 DEFINITIONS

Alternative Mooring Arrangement: A mooring plan that uses a combination of fixed berthing structures and anchors to moor vessels to meet the heavy weather mooring standard.

Apron: An area adjacent to and extending the length of the berth used for

vehicle passage, material staging, parking of vehicles engaged in maintenance, repair, delivery of parts, etc.

Berth: Any designated place where a vessel is secured including the dock and slip, usually indicated by a code or name.

Contract Award Date: Designated in accordance with the contract provision "Period of Performance" found in Section F.

Contract Start Date: The date the berth must meet the contract's requirement. It is 120 days after the Contract Award Date unless the parties agree to an earlier date.

Dock: The structure located within the layberth facility having the mooring hardware for vessels, synonymous with pier and wharf.

Dock Face: The exposed outward structural components of the pier or wharf that bears the vertical load of the structure and transfers the lateral load from the fenders to the structure.

Full-service port complex: A port area with maritime services available, including but not limited to ship repair facilities, availability of around the clock pilotage, bunker supply and delivery services, and ship assist tugs as specified in section C-6(A).

Heavy Weather Mooring Plan: An analysis consisting of drawings and mooring calculations that combines vessel characteristics, existing or additional mooring points, effects of wind direction, wind speed, tides and currents proving that the vessel(s) can be safely moored permanently at the proposed layberth up to the maximum weather and wind conditions specified for the layberth geographical area.

Layberth: A berth used by a vessel for an extended period of time. This term includes the pier and water areas immediately surrounding the ship(s). It includes the fenders, and mooring points (buoys, bitts, bollards, etc.).

Layberth Facility: The layberth, plus the pier apron, the parking area, the guard shack, the perimeter barrier, and the security camera

Non-resilient fenders: Structures with an outer layer of High Impact Ultra High Molecular Weight (UHMW) instead of elastic material (rubber or plastics) placed along the pier face to cushion the vessel and prevent hull-plating damage.

Ramp: The primary vehicular access way onto a RO/RO vessel that is characterized by the location of entry (stern ramp/side-port ramp).

Ship Manager/General Agent: The MARAD contractor for a designated group of MARAD vessels that is responsible for ship operation, maintenance, and activation readiness.

Vertical live loads: These are items moving or being caused to move over the dock.

Water level: The height of water above or below the datum reference point as predicted by local tide tables and affected by seasonal flooding or drought.

Working Area: The area of a dock adjacent to vessel to be used for deliveries, staging gear, and vehicle access.

C-3 STATUS OF VESSELS

- (A) RRF vessels will normally be maintained in an idle status and will remain at the layberth site in all weather conditions, except to participate in a military exercise/operation, to conduct some repairs, or comply with periodic regulatory requirements. Ship activations and dock trials are expected to be conducted at the layberth.
- (B) RRF vessels may have a reduced operating status (ROS) crew onboard. ROS is an operating status, which involves most systems not directly required to support the onboard crew being in an idle condition. An ROS crew of approximately 10 personnel will be assigned to each ship and will live aboard.
- (C) The vessel(s) are expected to remain at the layberth in all weather conditions up to the maximum rating of the heavy weather mooring plan required by this contract.
- (D) Engineering plants will be idle except for periodic preventive maintenance, dock trials, and other required readiness tests.
- (E) The shipboard fire-fighting system may be inoperable.
- (F) All deck and cargo handling equipment will be operational and periodically in use, including side port platforms.
- (G) The cathodic protection systems will be energized.
- (H) Mooring equipment will be de-energized. The constant tension feature of mooring winches will not be in use. Mooring lines and wires will be provided by the Government or the Government's Ship Manager/General Agent for each vessel.
- (A) The vessels may or may not be able to get underway.
- (B) The vessels may be used for cargo handling training and for other training purposes.
- (C) Interior house and engineering spaces may be dehumidified with ship's equipment.

(D) Ships shall be boomed or have booms available for deployment at all times. In circumstances where prevailing currents, tides, or vessel traffic preclude having booms continuously in place, the containment booms should be kept in readily deployable locations such as onboard or adjacent to the vessel.

C-4 BERTH REQUIREMENTS AND THE CONTRACTOR'S OBLIGATIONS

(A) **The Contractor's Obligations.** The layberth Contractor shall bear all costs associated with obtaining and maintaining an acceptable safe layberth except as specifically identified. Some items are identified for emphasis only. An acceptable safe layberth shall meet the following minimum criteria and technical features.

(B) **Plan of Action and Milestones.** If the facility proposed by the Contractor requires site improvements, the Contractor shall provide a plan of action and milestones listing the key events in the facility improvement process from the time of award to the designated completion date of the facility. During periods of facility improvement, an updated POA&M shall be submitted monthly to the Contracting Officer's Representative.

(C) **Permits/Licenses/Leases.** The Contractor is responsible for acquiring and maintaining the currency of all permits, licenses, and leases necessary to operate the layberth facility for the duration of the contract. Thirty (30) days after contract award the Contractor shall provide copies of any required permits, licenses, and leases to the Contracting Officer and the COR.

(B) **NEPA requirements.** The offeror shall include a detailed scope of work for any facility modifications, renovations, and/or construction related to layberthing MARAD ships. This includes both landside and in-water work. MARAD will determine the anticipated National Environmental Policy Act (NEPA) level of review for the project: Categorical Exclusion, Environmental Assessment/Finding of No Significant Impact, or Environmental Impact Statement/Record of Decision. The successful offeror will be responsible for the completion of MARAD's NEPA documentation, in collaboration with MARAD's NEPA Coordinator in the Office of Environmental Compliance, prior to execution of the contract award. The offeror should demonstrate receipt (or reasonably anticipated receipt) of all environmental permits and approvals necessary for the above-mentioned work, such as Army Corps of Engineers permits and consultations under Section 106 of the National Historic Preservation Act, 54 U.S.C. 306108, and Section 7 of the Endangered Species Act, 16 U.S.C. 1531, including satisfaction of all Federal, State, and local requirements, and completion of the NEPA process.

The successful offeror, in collaboration with MARAD, will be responsible for the completion of consultations under Section 106 of the National Historic Preservation Act and Section 7 of the Endangered Species Act prior to completing NEPA. *Until the NEPA review is completed, no action concerning the proposed project may be taken that would have an adverse environmental impact or limit the choice of reasonable alternatives.*

(D) **OSHA, USCG, and Safety.** The Contractor shall provide, operate, and maintain a safe layberth in accordance with the requirements of the U.S. Coast Guard Captain of the Port (COTP) and the contract. The Contractor shall ensure that the layberth facility satisfies all Occupational Safety and Health Administration (OSHA) safety requirements. The facility, including but not limited to the layberth and associated structures, shall be well preserved and maintained at all times to ensure:

1. The proper level of safety for the vessel(s), facility, and personnel
2. The safe movement of the vessel(s), personnel, and vehicular traffic within the facility
3. Clean appearance, proper maintenance, and free from garbage and debris
4. Vessels at layberth shall be clear from the main shipping channel, at all times. When ships are moored parallel to the main shipping channel, the outboard ship shall be at least 50 feet from the shipping channel.

C-5. LAYBERTH FACILITY REQUIREMENTS

(A) Layberth access shall be available at all times (including Contractor provided access between nested vessels) to facilitate crew boarding, training, cargo handling, ship husbanding, activations, and repair services required by the Government or its contractors. The Contractor shall ensure personnel and contractor access to and security of the layberth to meet the requirements set forth below:

1. **Roadways.** At all times during the term of this contract, access roads to the layberth facility, pier, and pier apron, (including bridges and tunnels if applicable) shall not present obstruction nor restrict the safe access to the dock by personnel and vehicular traffic including all local firefighting vehicles and AASHTO HS 20-44 trucks. The access roads and bridges shall have sufficient load bearing capacity and dimensions for AASHTO HS 20-44 truck traffic and the largest and heaviest local firefighting vehicles.
 - 1.1. Road maintenance within the layberth facility shall be the responsibility of the Contractor. All access roads, roadways, and the layberth shall be kept clear from snow, ice, debris, potholes and vegetation at all times.
 - 1.2. The Contractor shall be responsible for, and bear all expenses associated with ensuring that there are properly paved and maintained access roads, (including bridges and tunnels if applicable) within the layberth facility.
 - 1.3. There shall be an adequately sized turn around area to enable AASHTO standard HS 20- 44 trucks to turn around. The turn-around area shall be in close proximity to the dock apron so that such vehicles can turn around and back up to the dock or turn around before leaving via the access road.

2. **Parking.** The Contractor shall provide a well-maintained paved or gravel aggregate parking area adjacent to the pier. The parking area, reserved for layberth and shipboard personnel and visitors, shall be in addition to the pier staging area and have parking capacity for a minimum of twenty (20) automobiles per vessel. Parking spaces shall be clearly marked and be at least 10 feet wide and 20 feet long. The parking area shall be no closer than 100 feet to the nearest vessel and no farther than 500 feet from the nearest vessel and must meet the criteria specified below:
 - 2.1. Does not require motorized transport between the parking area and the vessel.
 - 2.2. Does not require authorized personnel to pass through additional security checkpoints other than the layberth facility entrance control point.
 - 2.3. Does not require crossing major traffic routes or if part of a larger facility does not require crossing inbound/outbound truck traffic lanes.
 - 2.4. Parking does not prevent delivery by truck to the vessel, does not reduce or inhibit truck turnaround area, and does not inhibit, block, or otherwise obstruct the 2-way passage of emergency vehicles throughout the length of the layberth.
3. **Accommodation Ladder.** The dock shall have a suitable landing area to receive the vessel's accommodation ladder at any water level. If at any time it is determined by the Government that the platform is improperly positioned or of insufficient size, it is the Contractor's responsibility to resolve the problem at Contractor's expense. This would include fabricating and installing a separate and distinct gangway system, if determined necessary by the Government.
4. **Communications.** The Contractor shall ensure that communications with the layberth facility operator and/or manager are available to the Government on a 24 hour per day, seven days per week basis. Additionally, the Contractor shall have e-mail capability.
5. **Site Inspection Boat.** The Contractor shall have access to a suitable boat that shall be available upon request to conduct waterborne inspections during any site survey. For estimating purposes, assume one site survey per year.

6. **Oil Spill Plan.** The Contractor is responsible for establishing and maintaining an oil spill response plan that is approved by the appropriate local, state, and Federal authorities for the layberth facility. The oil spill response plan shall be updated and submitted to the Contracting Officer thirty (30) days prior to layberth acceptance.

(B) The Contractor shall bear all expenses associated with utility services required for the normal operation and maintenance of the facility. Recurring expenses for the ship(s) are reimbursable. Licenses and permits are the responsibility of the Contractor.

1. **Shore Power.** The Contractor shall provide metered shore power services as required by Attachment 1 and 2 to the vessel(s) at their shore power receptacles. The Contractor shall provide separate shore power outlets, connections, and all other equipment, including attachment fittings rated to meet the 3-phase/60hz electrical requirements identified in Section J to supply electric power for machinery tests, dehumidification equipment and cathodic protection. Individual pier side circuit breakers shall have a load trip and shall be equipped with short circuit and overload protection on all three ungrounded phases. Six (6) individual 400 ampere rated (based on 90 degrees C conductor and 30 degree C ambient temperature based on the National Electrical Code for not more than three current-carrying conductors in raceway, cable, or earth) shore side combination circuit breaker/cable feeds shall provide shore power to each vessel. The circuit breakers shall be installed pier side in such a manner as to allow personnel quick access to the circuit breakers in case of an emergency. The circuit breaker location and access shall be clearly marked for maintenance personnel. When using single conductor cables, they must be of the same length, new and/or in good condition.
2. **Electrical Power.** Electrical power that is consumed shall be measured on the local electric company's meter for the purpose of measuring power usage by the vessel(s). The Contractor shall arrange for a separate meter to be supplied for each vessel. The Government will order reimbursable electric power service from the Contractor if the Contractor obtains a commitment from the power company to exempt the layberth's electric service from taxes. In the event the Contractor is unable to obtain tax-free electrical services, the Government, at its discretion, may contract directly for the services or order the reimbursable electric power from the Contractor, notwithstanding the tax consequence. In the event the Government chooses to procure electrical services through the Contractor, the Contractor shall subcontract for electrical services at the most competitive rates obtainable. For layberth facilities in locations where electrical power is deregulated, the Contractor shall review rates on an annual basis to procure the most economical service.
3. **Metered Potable Water.** The Contractor shall provide a metered potable water service connection for each vessel with a minimum requirement of 200,000 gallons per day at a minimum constant pressure of 40 psi at each ship(s) deck connection simultaneously, via a 2 1/2" hose no further than 200 feet from each ship(s) potable water connection. The Contractor shall provide

a reduced-pressure type backflow prevention device on the shore side of the potable water connection and test it in accordance with local authority

requirements. Water quality shall meet requirements of the Food and Drug Administration (FDA), U.S. Public Health Service, and the Department of Health and Human Services.

Potable water shall be delivered to the vessels with at least a measurable trace of halogen (chlorine or bromide). Thirty (30) days prior to layberth acceptance the Contractor shall provide two copies of a laboratory report to indicate that the water has been tested and meets City Hookup Standards.

4. **Telephone Service.** The Contractor shall provide basic infrastructure for three (3) telephone lines and one high speed data line for each vessel. This shall include cables, attachment, fittings, and jacks to connect from the shore side connection point to the vessel. The ship manager shall provide telephone service, phones, and pay telephone/data usage charges. Any additional lines requested by the Ship Manager will be at their expense.
5. **Sewage.** The vessels use USCG-approved Marine Sanitation Devices (MSD) to discharge effluents into the surrounding water. Where discharge of MSD effluent into layberth waters is not permitted, the Contractor shall provide for direct connection for vessel effluent discharge at an average rate of 300 gallons per day per ship (total capacity of 1000 gallons per day per ship). The contractor shall furnish all hoses and fittings as required to properly connect to the vessel effluent discharge connection. All hoses, fittings and equipment utilized by the Contractor shall be in good material condition. The Contractor shall ensure that all effluent is handled and disposed of in accordance with applicable federal, state, and municipal laws and regulations.
6. **Connect/Disconnect Services.** On each occasion that the vessel(s) enter(s) or depart(s) the layberth, the Contractor shall be responsible for all connect/disconnect services, including, but not limited to, connecting vessel(s) to/disconnecting the vessel(s) from shore electric power, potable water, steam, telephone services, and sewage. Vessels may enter and depart 24 hours a day / 7 days a week. The Contractor is responsible for providing and rigging all hoses, piping, cables, and wiring to the vessel (s) for pier services. The Contractor shall assume that ship's cranes are not available. If required, the Contractor shall provide any additional crane service if necessary to provide connect/disconnect services. The costs associated with connect/disconnect services will not be part of the per-diem rate and are paid according to the rates specified.
7. **Utility Usage Fees.** The Contractor will pay for shore power, potable water, and all costs for generation/delivery of steam (where required – to include utility usage and fuel consumed) consumed by the vessel(s). The recurring costs associated with the provision of these services shall be submitted to the Government as reimbursable expenses. The Contractor shall provide copies of all invoices from the electrical and water suppliers when submitting claims for reimbursement.

Garbage Collection. The Contractor shall provide for pier side garbage collection. An industrial size dumpster (minimum size shall be 4.0 cubic yards), shall be located within 100 feet of the gangway base of each ship. Contractor shall have the dumpster emptied on a regular basis, not less than

1. weekly. During ship activations the dumpsters may be filled faster than the regular basis and the COR may request additional removals, additional garbage collections are covered in Section C-14.
2. **Recycling Collection.** The Contractor shall provide for single stream recycling. The materials to be recycled are glass, metal/aluminum, paper, cardboard, plastics and construction steel (a steel bin need only be provided if it is available in the area where the facility is located). The type of recycling container to be provided is based on availability of service at the contractor's facility but shall not be less than 200 cubic feet capacity. The recycling container shall be located within 100 feet of the gangway of each ship. Local, state, and federal recycling regulations shall be observed in the provision of receptacles and collection. Contractor shall have the recycling container emptied on a regular basis, not less than weekly. During ship activations the recycling container may be filled faster than the regular basis and the COR may request additional removals, additional recycling collections are covered in Section C-14.
3. **First Responders.** There shall be an availability of first responders to include local firefighting, police and emergency resources for combating a vessel fire or other emergency at the layberth. All first responders shall be located within a 15-minute transit time of notification to the layberth.
4. **Fire Fighting Capability.** Fresh or saltwater hydrant services providing a minimum of 1,500 gallons per minute at 100 pounds per square inch (psi), shall be provided by the Contractor. Prior to layberth acceptance, the Contractor shall provide results of flow and pressure test for pier side fire hydrant, if applicable.
5. **Moorings.** The Contractor shall inspect all mooring fittings, including those moorings that are afloat, constructed offshore, or are otherwise not accessible by foot, as necessary but no less frequently than monthly.
6. **Additional Services.** Specialized removal services such as "foreign garbage," as defined by the United States Department of Agriculture (USDA), or hazardous materials removal must be available to the vessel(s) upon request. Charges for such special services are reimbursable. All items/findings subject to specialized removals, shall be disposed of and documented in logs, in accordance with all local, state, and federal laws and regulations. The Government reserves the right to conduct inspections of the Contractor's specialized removal facilities and processes.

7. Liability Disclaimer

The Maritime Administration (MARAD) shall not be held liable for any

damage, loss, or injury to any vessel, equipment, property, or personnel arising from the acts, omissions, negligence, or willful misconduct of the Contractor or its agents, subcontractors, or employees in the performance of layberth operations and related services. The Contractor shall be solely responsible for any and all such damages and shall indemnify and hold harmless the Government from any claims, demands, or causes of action resulting therefrom.
FAR 52.246-25 – Limitation of Liability – Services.

C-6. FULL-SERVICE PORT COMPLEX

(A) The layberth facility shall be located in or near a full-service port complex that has the following services available (Where not otherwise stated below, to be located in the full-service port complex the facility for the required service shall be located no farther than 15 nautical miles from the Contractors layberth):

1. There shall be at least 3 existing ship repair companies that in their normal course of business perform ship repair services for comparable ocean-going vessels. Company facilities shall be located within 30 miles driving distance from the layberth. The businesses must be on call 24 hours a day and provide services including but not limited to the following crafts: welders, machinists, boilermakers, pipe fitters, riggers, electricians, labor, and skilled trades. In addition, companies shall have timely access to all materials and tools customary to the business of ship repair and ship repair services.
2. The port must be navigable 24 hours a day under normal conditions.
3. There shall be pilot services available 24 hours a day and seven days a week to support individual or multiple simultaneous vessel movements.
4. There shall be tugs normally involved in commercial ship-assist/harbor movements capable of arriving at the vessels within 120 minutes of request for service. The normal "home" dock for each ship-assist tug shall be no more than 15 nautical miles via navigable waterways from the layberth site. There shall be adequate ship-assist harbor tugs to safely move all the vessels under this layberth contract, while in a dead ship status, independently and simultaneously. This includes but is not limited to moving the ships to a safe anchorage, to another facility within the port complex, and maneuvering the ships within navigable turning basin and shipping channels.
5. There should be commercial water-borne bunkering services for ocean-going vessel(s) within 24 nautical miles transit via navigable waterways of the layberth. The bunker loading facility shall be normally used for the purpose of loading bunker barges for ship fueling needs from shore-based storage tanks. If commercial water-borne bunkering services within the port complex is not available, delivery of bunkers via barge to the assigned vessels at the layberth shall be allowed.
6. There shall be oily waste disposal services, and a US Coast Guard recognized Oil Spill Response Organization within 2 hours waterborne transit via navigable waterways from the layberth.

C-7. ENGINEERING DRAWINGS

(A) The Contractor shall provide detailed engineering design drawings, including but not limited to a facility drawing and a mooring plan. The engineering drawings shall be signed and certified by a professional engineer licensed in the jurisdiction of the proposed layberth facility (conceptual sketches are not acceptable). The certification will include a statement that the facility, to include all mooring structures, which results from proposed improvements accomplished in accordance with the certified plans, drawings, and calculations will meet all of the related requirements of the contract and meet all of the minimum USCG requirements with respect to marine safety and pier structural adequacy.

1. **Proposed Mooring Plan/Facility Drawing and As-Built Mooring**

Plan/Facility Drawings. The proposed facility drawing shall provide a scaled general layout of the proposed layberth facility accurately depicting the intended mooring location of the vessel(s) and proximity to shipping channels. The drawing shall show other significant features of the facility such as pier, physical barriers, lighting, guard shack, roads, parking, buildings, etc.

- 1.1. The proposed mooring plan shall show the location of the vessel(s), all mooring fittings, and mooring line arrangement. The proposed pier, dolphins, bollards, and other shore side mooring fittings, including the number, size, arrangement and positions of mooring lines, will be safe and capable of holding the vessel(s) securely to the layberth. This capability shall apply to all tidal, current, and climatic conditions. The pier structure shall take into account the vessel(s) freeboard, drafts, and tidal conditions in the area. Drawings shall also depict resilient fendering and other significant features (potable water, shore power, telephone, fire hydrants, etc.) and include assumed positions of mooring lines as well as the rated safe working load (SWL) of all mooring fittings (bollards, fenders, dolphins, mooring buoys, etc.). All mooring fittings shall be clearly labeled on the engineering design drawings.
- 1.2. Prior to layberth acceptance, the Contractor shall provide a copy of the “as built” mooring plan/facility drawing, signed and certified by a licensed professional engineer, to the Contracting Officer and the COR. Copies of all calculations used in developing the heavy weather mooring plan shall also be provided. The certified mooring plan shall indicate the rated capacity for the bollards/fittings that are available for use and shall identify any bollards/fittings not intended for use. All bollards/fittings are to be clearly labeled on the mooring plan. The Contractor shall provide clear markings at the dock to indicate where each class of ship shall align with the pier.

C-8. WATER DEPTH

(A) The water depth, based on the National Oceanic and Atmospheric Administration (NOAA) chart datum for soundings at mean lower low water (MLLW) or seasonal low water, whichever is lower, shall be at least four (4) feet greater than the stated deep draft of the type of vessel to be located at the layberth (See Section J for ship characteristics). This depth shall be maintained the length and breadth of the proposed layberth, including the area needed to pull the vessel(s) away from the layberth with tugs, plus the access route from the layberth to the navigational channel, extending outward to the sea buoy, or pilot station, whichever is farther.

1. **Soundings.** Thirty (30) days prior to contract commencement, the Contractor shall provide recent (within 6 months) water depth soundings. The water depth at the berth shall be validated by multi-beam echo soundings based on the NOAA chart datum for soundings, as specified in Section E.6, prior to commencement of the period of performance. If vessels, including the MARAD vessels, at the berth under a contract, are currently occupying the layberth, it is the Contractor's responsibility to move those vessels away from the berth to accomplish the initial multi-beam survey. If the option year(s) is exercised, follow-on annual multi-beam surveys shall be conducted at the berth with results provided to the Contracting Officer and the COR. Surveys shall be scheduled to coincide with sea trials or during other periods when the berth is clear. If the Contractor is unable to schedule the annual multi-beam survey based on ship schedules, the Contracting Officer shall be notified in writing.
 - 1.1. For undeveloped facilities, the design drawings must clearly indicate planned water depth after dredging. The POA&M shall include the dredging completion date and all significant events related thereto (See C-4(B)).
2. **Working Area.** The waterside of the layberth shall be of sufficient width and depth to facilitate safe docking and undocking without interference to other shipping and shall be adequate to permit safe working room for tugboats, barges, lighters, and floating cranes. As a minimum, 75 feet extending outward from the vessel, or if nested, from the outboard vessel, shall be free and clear to provide safe working room. The water depth of the 75- foot clearance beyond the outboard vessel shall be as follows: The first 50 feet outboard of the vessel shall be the same depth as required in section C.5.(B) for maneuvering the ship away from the layberth or nested ship. The remaining 25-foot clearance shall be adequate to accommodate the depth of water required by service tugs for the local area, but no less than 20 feet based on the NOAA chart datum.
 - 2.1. Coordination with local Pilots and Docking Masters shall be maintained to determine local minimum requirements for docking and undocking. If the local Pilots or Docking Masters determine that the requirements stated in C-8(A) 2 are inadequate for normal ship movements, then the Contractor shall comply with the increased minimum water depth requirements as specified by local Pilots and Docking Masters for

docking/undocking and shall bear all expenses to increase the water depth.

3. **Obstructions.** The layberth Contractor shall ensure the removal of all underwater obstacles that create a hazard to the vessel at the layberth and the Contractors area of responsibility prior to the vessel's arrival on berth.
4. **Dredging.** If the performance of normal maintenance to the layberth, including dredging, requires temporary movement of the vessel from the subject layberth, the Contractor shall bear all expenses incurred in moving the vessel including but not limited to tugs, pilotage, and temporary layberth costs. Any temporary layberth used shall meet all the requirements of this contract. Should the Contractor be unable to offer an acceptable substitute layberth during such a maintenance period, the Government reserves the right to acquire and move the vessel to a temporary layberth of its choice at the Contractor's expense or to terminate the contract for default.
5. **Dredging Completion Certificate.** If dredging is required to meet the depth requirements of Section C-8, a Dredging Completion Certificate shall be submitted to the Contracting Officer and the COR no later than 30 days after each instance where dredging is completed.
6. **Turning Area.** Adequate room to turn the vessel(s) must be available. The proposed turning area shall be marked on a harbor chart. The local Docking Pilot's Association or equivalent must approve the proposed turning area.
7. **Air Draft.** Clearance between the ship's highest point and overhead obstructions, from the open seas to the layberth shall be at least two feet at mean higher high water (MHHW) or seasonal high water, whichever is higher (See Section J for ship characteristics).

C-9. MOORING ARRANGEMENT

(A) The proposed berthing facility shall be of sound structural design, construction and condition to support a heavy weather mooring plan in accordance with Mooring Service Type III standards as identified in Unified Facilities Criteria (UFC) 4-159-03 utilizing sustained wind speeds of 130 mph. Wind speed value is to be verified against the most current printing of exposure D (American Society of Civil Engineers (ASCE), Minimum Design Loads for Buildings and Other Structures; flat unobstructed area exposed to wind flowing over open water for a distance of at least 1 mile). If at any time during the contract, the researched wind speeds are higher than 130 mph the contractor shall notify the MARAD technical POC and utilize the higher speed for mooring calculations. A draft heavy weather mooring plan with drawings shall be submitted no later than 14 calendar days after Contract award date. An approved mooring plan and drawings shall be submitted no later than 14 calendar day before the Contract Start Date.

1. **Heavy Weather Mooring Plan.** The layberth shall have a sufficient number of properly positioned and fastened mooring line fittings (bollards, dolphins, etc.) to meet Mooring Service Type III requirements for the vessel(s) assigned

without pretensioning of lines (See Section J for ship dimensions and wind speeds by port). This requirement is modified by any other local requirements mandated by the cognizant USCG Captain of the Port (COTP) that increases the required strength and shall be the responsibility of the Contractor for the duration of the contract. Attachment 8 details required elements in the Heavy Weather Mooring Plan deliverable.

- 1.1. The heavy weather mooring plan and calculations shall demonstrate full compliance with all the relevant terms and conditions in this contract, showing that the vessel(s) can be safely moored permanently at the proposed layberth up to the maximum weather and wind conditions specified herein.
- 1.2. When preparing mooring calculations, the combination of wind direction, wind speed, tides and currents shall be analyzed to determine the worst-case scenario. Mooring calculations are to ignore the presence of nearby external structures, buildings, other ships, etc. as mitigating the effects of wind. If the layberth is within 1,000 feet of a navigation channel, a passing vessel analysis is to be prepared. The passing vessel analysis is to identify pier improvements required to mitigate the passing vessel effects.
Assumptions to be used:
 - (i) Passing vessel speed is reasonable for the area if not regulated or controlled.
 - (ii) Distance off moored vessel is the max length vessel allowed to transit the area.
 - (iii) Assume draft of passing vessel is max draft allowed to transit the area.
- 1.3. The mooring lines and layberth mooring points shall be analyzed in accordance with Mooring Service Type III standards as identified in UFC 4-159-03. In performing this analysis, a minimum factor of safety of 2.5, based on the minimum calculated breaking strength for the mooring line material in the heavy weather mooring plan is required for

all mooring lines subject to tension forces. Assume pretensioning of lines is not available. OPTIMOOR software is an acceptable methodology.

- 1.4. The mooring lines used in the heavy weather mooring plan shall not be the current ships complement of mooring lines, pendants, and fittings.
- 1.5. To the greatest extent possible, all mooring lines used in the heavy weather mooring plan shall be of the same type and size. If using High Modulus Polyethylene (HMPE) or other minimum stretch lines, a mooring pendant shall be included with each HMPE or other minimal stretch line in the heavy weather mooring plan. The heavy weather mooring plan shall specify the mooring pendant is to be connected to the mooring line with an equivalent or greater strength Tonsberg Mooring Link or Mandal Fairlead Shackle. The use of cow hitches or other methods to secure the mooring pendant to the mooring line is not permitted.
- 1.6. When calculating the safe working load of layberth mooring points, a minimum factor of safety of 5.0, based on the ultimate strength of the fitting is required. The SWL of all fittings on the layberth shall be identified on the required drawings that are submitted to the Government.
- 1.7. The USCG COTP must agree that the proposed use of the facility does not create a navigational hazard, or obstruction of navigational aids, nor are there any other waterway conflicts.
- 1.8. All heavy weather mooring arrangements are subject to the approval of the USCG COTP. The Contractor shall be responsible for any action to satisfy the USCG COTP requirements for layberthing the vessel(s) under the condition that the vessel(s) are incapable of getting underway to sail out of the track of impending heavy weather due to their reduced operating status. The vessel(s) are intended to stay at the layberth facility during heavy weather. The Contractor is responsible for any additional modifications to the facility required to meet and maintain USCG's approval requirements.
- 1.9. Mooring line fittings shall be sufficiently arranged to minimize the magnitude of ship motion in all directions, positioned to not result in excessively steep mooring line angles, and of sufficient size and design to hold the number of turns and/or eyes of ten (10) inch or less circumference mooring lines without chafing as called for in the heavy weather mooring plan.
- 1.10. A pull test up to the designated capacity of the installed bollard shall be performed by the Contractor for each mooring fitting (e.g., a 100-ton bollard shall be tested to withstand at least 100 tons) prior to acceptance of the layberth. Required mooring line angle is 30 degrees or less. Any mooring fitting not intended for use in the performance of this contract shall be removed or made physically incapable of accepting turns, bights, or eyes prior to commencement of the contract and shall be identified as disabled on the mooring plan. Results of the pull test are to be submitted to the CO prior to contract start date.

- 1.11. When vessels are moored as indicated in C-3(M), to the greatest extent possible, aft mooring lines for the vessels must be positioned so as not to interfere with vehicle traffic and the lowering and raising of the stern ramp.
- 1.13. At the maximum, one vessel may be nested outboard of another vessel secured to the dock. No other nesting will be permitted. If layberthed along a river, bows are to be pointing upriver or a continuous means of protecting the vessel rudder/propeller from striking debris floating downriver must be in place.
- 1.14. If the vessel(s) are not moored in accordance with the Contractor's heavy weather mooring plan, the Contractor shall notify the Contracting Officer, COR, and ship manager in writing of the deficiency as soon as it is discovered. If the ship manager desires to employ additional mooring lines after the vessel is moored per the heavy weather mooring plan, this is permissible provided the following: 1) the heavy weather mooring plan supplied by the Contractor is strictly adhered to, 2) the Contractor reviews and approves the additional mooring line configuration prior to implementation, and 3) only bollards not used in the Contractor supplied heavy weather mooring plan are utilized. MARAD shall not be held liable for damage resulting to the layberth because a vessel is not moored in accordance with the heavy weather mooring plan until such notification has been received by the Contracting Officer.
2. **Mooring Plan Distribution.** The Contractor shall provide a copy of the heavy weather mooring plan and all mooring calculations to the ship manager of the vessel(s) to be moored at the layberth at least 24 hours after being notified of the vessel's arrival by the ship manager, MARAD Marine Surveyor, Contracting Officer, or COR. The mooring plan shall be provided each time a vessel is expected to arrive at the Contractor's layberth facility, regardless of whether the vessel has visited the facility in the past. The heavy weather mooring plan shall be provided whether the ship itself is to be moored to the layberth alone or nested with another ship.

C-10. FENDERING

- (A) The Contractor shall continually provide all resilient fenders (including resilient fenders between nested vessels) of appropriate construction, size, and number to safely resist the maximum anticipated loads based on the heavy weather mooring calculations from the approved heavy weather mooring plan and prevent damage to the vessel(s). The Contractor is responsible for the installation (including resilient fenders between nested ships), repair, maintenance, and upkeep of the fendering throughout the term of the contract.
1. Resilient fenders between the dock and the vessel shall be provided to keep the vessel off the "hard" portion (e.g., wood, metal, concrete) of the dock face and protrusions at all times (timber fender piles are not considered the "dock face"). No hull contact with "hard" surfaces is acceptable. In lieu of resilient fenders, High Impact Ultra High Molecular Weight (UHMW) polyethylene, used as recommended by the manufacturer, is acceptable fender material between the ship and layberth.

2. The resilient fenders used between nested ships will keep the vessels at least four (4) feet apart in all weather conditions.
3. The maximum allowable pressure is 25 pounds per square inch (psi) against any portion of the vessel hull by fenders or other structures. The maximum horizontal distance between any two fendering points shall not be more than 100 feet. Ship's hull curvature/flare shall be analyzed carefully to determine proper fendering locations. Section J provides vessel drawings for use in calculations.
4. After the vessel(s) arrives at the berth, the government will inspect to ensure proper fendering.

C-11. PIER APRON

(A) The Contractor shall provide the following:

1. A paved concrete or asphalt pier apron in good condition of a size sufficient to position stores and materials to be loaded aboard the vessel(s).
2. The pier apron must be accessible by the vessel's stores crane.
3. The pier apron must permit vehicular access to and from the vessel brow.
4. The pier apron shall be secure, well lit, and well drained.

(B) The pier apron shall safely support the following vertical live loads:

1. The pier apron must be designed to safely support a uniform vertical load of 425 lbs. per square foot and to accommodate a WB-50 truck and the heavier of an American Association of State Highways and Transportation Officials (AASHTO) HS-20-44 truck or the heaviest local fire fighting vehicle, whichever is greater. The portion of the pier apron that supports the stern ramp(s) of the vessel(s).
2. The pier apron shall support a point-load characterized by a Kalmar DCB28 RORO Forklift tire warehouse forklift with a full load.
3. The dock shall be of sufficient dimensions to facilitate the movements of an AASHTO HS- 20-44 truck or the largest local fire fighting vehicle, whichever is greater, on the pier apron. The width of the pier apron shall safely accommodate the two-way passing of two AASHTO HS 20-44 trucks or fire fighting vehicles whichever is larger.

4. The pier apron shall provide staging area of sufficient size to allow for the loading and unloading of vehicles by fork trucks and for the staging of 12 pallets of palletized cargo.
5. All fixed structural mooring fittings on the pier apron shall be accessible by foot traffic (e.g., ship's crew or line handlers).
6. The pier apron shall present no obstruction, protrusion, or obstacle that may prove hazardous to the ship and personnel.

(C) The distance between the dock height and the water level shall enable the ramp to be lowered upon arrival at the layberth and be kept in a serviceable position continuously without the need to secure the ramp due to water level changes.

(D) The vessel(s) will have the stern ramp lowered onto the dock. Only the inboard vessel, if nested, must be able to deploy the ramp. However, if the berth configuration is such that both vessels can deploy their stern ramps this shall be accomplished without having to shift or move the vessels at the layberth.

(E) When lowered, stern ramps will extend aft of the vessel over the layberth as listed below:

WATSON CLASS LMSR	
Distance Aft	135 ft (straight)

(F) The area on the dock where the stern ramp will be landed shall be clear of any obstruction (e.g., bollards, piping, manifolds, hand rails, etc.). The pier apron shall accommodate the lowered stern ramp at all times. The pier apron area supporting the ramp shall permit access of an AASHTO HS 20-44 truck onto the vessel.

(G) The layberth and associated structures shall not present a hazard to the vessel(s). The layberth shall be located sufficiently distant from areas where sand, grit, dust, bird droppings or other airborne or waterborne substances could hazard the material readiness of the ship's equipment or crew safety. If foreign material is deposited on these vessels, the Contractor shall be responsible for the cost of cleaning the vessel to the satisfaction of the Government. Persistent deposits of foreign material are cause for termination of this contract.

(H) The layberth and structures adjacent to the layberth shall not present a fire hazard to the vessel(s). The lay berth shall be fire protected with an approved fire extinguishing system if built with a combustible material such as wood or equivalent.

C-12. SECURITY

(A) The Contractor shall comply with and implement the following security requirements:

1. **Layberth Access.** Layberth access shall be available on a continuous 24 hour per day, seven days per week basis. Authorized visitors must be provided access to the vessel(s) including, but not limited to, access across any and all labor picket lines.
2. **Access List.** Access will be restricted to personnel designated by the Government. The Contractor will maintain a list, to be furnished by the vessel(s) Master(s)/OIC(s), of individuals requiring regular or frequent access. This access list will be kept at the guard shack. The Master/OIC or his representative shall clear individuals seeking access not named on the access list before they are allowed access to the layberth. Authorized visitors are required to provide proper photo identification.
 - 2.1. The Government/Ship Manager reserves the right to subcontract for ship repair and/or stevedore services of its own choosing for the purpose of performing work onboard, or associated with the vessel, at all times that the vessel is moored at the facility. Said contractors and subcontractors shall be provided with unencumbered access to the vessel (including support vehicles) including, but not limited to, access across any and all labor related picket lines. The ship's crew shall be permitted to load ship's stores and spare parts without the assessment of stevedore's fees.
3. **Security Fence.** The Contractor shall ensure the layberth facility, including the parking area, is protected by a well-maintained perimeter security fence. The Contractor is responsible for providing and maintaining the perimeter security fence. If the layberth is part of a larger facility, there shall be a security fence separating the layberth from the rest of the facility. Perimeter fencing of the larger facility can be used for the layberth perimeter barrier for common fence lines provided it meets the requirements specified in this contract.
 - (a) The fence shall be installed around the layberth area. The fence shall be a minimum height of eight (8) feet, including outriggers and topped with a barbed wire and barbed tape concertina as specified in Security Fences and Gates UFC 4-022-03 Chapter 2 and UFC 4-022-03 Appendix C.
 - (b) The fence shall be designed, constructed, installed, and maintained to prevent unauthorized personnel and vehicles from approaching closer than 100 feet to the vessel(s). However, any placement of the fence must take into account that a minimum of 35 feet is required to provide adequate room for two-way traffic of AASHTO HS-20-44 vehicles.
 - (c) Perimeter fencing that runs over land to the water's edge shall extend eight (8) feet beyond the mean low water level. When fencing extends from the dock above the water, razor wire will be placed on the edge and bottom of the fence.
 - (d) Razor wire shall also be used on all open side sections of the fence to prevent access around the fence.

- (e) A clear zone, free of obstructions, vegetation, or objects that could be used for concealment or to scale the fence shall be established with a minimum of 10 feet on each side of the fence. The Contractor shall keep the clear zone clear, mowed, and empty at all times.
 - (f) The distance between poles on the interior of the fence shall not be less than 5 feet.
 - (g) The perimeter fence shall have a gate of sufficient size at the access control point to allow access of the size vehicles discussed in C-5(A)1 that can be closed when not in use.
 - (h) Fences and gates shall be properly maintained at all times. This includes, but is not limited to, ensuring that all fences, gates, and posts are free of rust, properly painted, vertically aligned and kept in a tear-free state (free from holes).
 - (i) At each access point in the fence, a reflective “Warning” sign (see sample Figure 3-2 in UFC 4-025-01) and a “Prohibited Items” sign shall be posted. At intervals of no greater than 100 feet along the entire length of the fence, reflective “Restricted Area” signs shall be posted (see sample “Restricted Area” sign in Figure 3-3 in UFC 4-025- 01). These signs must also be posted so that they are visible to boats and vessels approaching the layberth facility from the water.
 - (j) At intervals of 100 feet along the entire length of the fence government supplied, “No Drone” signs shall be posted in accordance with FAA 14CFR99.7. These signs must also be posted so that they are visible to boats and vessels approaching the layberth facility from the water.
 - (k) If requested by the Contracting Officer or COR, the Contractor shall provide for the placement of additional physical barriers. The Government will reimburse the Contractor the cost, less profit and overhead, of any additional physical barriers installed at its request.
4. **Waterside Barriers.** Waterside barriers are not normally required. However, in the event of an increased threat, the Contracting Officer or COR could implement additional security measures, which could include a waterside barrier. The contractor is not expected to have such a barrier on-site, but at a minimum should identify a source for such a barrier and be able to have it in place in not more than 7 calendar days upon notification by the Contracting Officer or COR. Two previously known providers of such barriers, Harbor Offshore Barriers (5720 Nicolle St., Ventura, CA 93003) and Truston Technologies, Inc. (520 Ridgely Ave., Annapolis, MD 21401), were both licensed to manufacture the original PSB as well as the variants.
5. **Security Guards.** The Contractor shall provide a bonded security guard, licensed in accordance with all applicable local and state laws and regulations, on a 24 hour per day, seven-day a week basis.
- (a) All security guards must possess a valid Transportation Worker identification

Credential (TWIC).

- (b) The security guard is required at the layberth access control point.
- (c) Security guards shall be well groomed and uniformed at all times.
- (d) Security guards must be U.S. citizens.
- (e) Individuals with felony convictions cannot be hired or employed as guards.
- (f) The Contractor shall be capable of providing additional security guards within 8 hours of notification by the Government.
- (g) The Contractor shall provide the security guards with detailed written instructions that define and illustrate the duties to be performed. Security guards will utilize vehicle Federal Anti-Terrorism inspection requirements and search the interior and exterior of all vehicles prior to allowing access to the layberth. The Contractor will provide guards with mirrors and lights to inspect the underside of vehicles entering the facility. Security guards will maintain a log of all facility visitors.
- (h) The Contractor shall equip the security guards with hand-held two-way radios. These radios must be compatible with and programmed to a minimum of 2 frequencies used on the ship(s) hand-held radios. Security guards shall establish a security routine with the ship's Duty Officer for overnight and weekend periodic radio contact and check- ins.
- (i) The Contractor shall furnish, install and maintain a silent alarm system to allow security guards to contact directly the ship(s), local police, fire department, or other authorities. The silent alarm system shall include a portable radio remote trigger with a minimum range of at least 500 yards that the security guards can carry.
- (j) The Contractor shall provide and maintain a climate-controlled guard shack for the security guard. The guard shack shall be located at the layberth access control point. The guard shack shall be designed and placed to permit maximum visibility of the layberth area and approaches.
- (k) The guard shack shall be equipped with a telephone and local telephone service to enable the security guard to contact the vessel(s) and local authorities. Telephone installation, maintenance, and monthly charges are for the account of the Contractor. Phone numbers for local, state, and federal authorities shall be posted in the guard shack.
- (l) The Contractor shall furnish and provide a toilet facility for each layberth in close proximity to the guard shack. Portable toilets are acceptable. On a daily basis, the Contractor shall service and maintain the toilet facility for cleanliness and sanitation. Portable units shall be emptied on a regular basis to prevent odor. Toilet facilities

shall not impede access or operations.

6. **Lighting.** The Contractor shall provide a lighting system for the layberth. The facility drawing shall include placement and intensity of the lighting fixtures. The Contractor shall provide and maintain lighting for the layberth access control point, parking area, and all areas in between, so as to provide a lighted passage for personnel on foot from the ship to the parking area.
 - (a) Lighting at the layberth access control point shall be a minimum of 10 foot-candles.
 - (b) Lighting at the approaches to the layberth access control point shall be a minimum of 2.5 foot-candles.
 - (c) Lighting at the parking area, mooring points, and all other areas shall be 1 foot- candle.
 - (d) Lighting shall not project glare towards the security guard shack.
 - (e) All lighting shall be of an automated system to come on prior to dusk and turn off after dawn.
7. **Closed Circuit Television (CCTV) Cameras.** A high resolution, color, digital surveillance system shall provide an unobstructed, continuous (24 hour per day, seven days per week) high-definition monitoring and recording of the layberth facility. Areas with fixed camera coverage shall include pedestrian and vehicle gates, vessel gangways, and vehicle ramps. Both land and watersides shall have Pan-Tilt-Zoom (PTZ) cameras to enable assessing potential threats. The system shall be operated around the clock and shall record the license plate number of each vehicle as it enters and exits the layberth. Cameras shall be monitored in the guard shack, but recording will be at a location other than the guard shack. Data files on electronic media shall be maintained for a minimum of 15 days. Further guidance on CCTV can be found in UFC 4-021-02.
8. **Security Plan.** The Contractor shall submit a Physical Security Plan that at a minimum encompasses the requirements of this section. The facility drawing will include the location of perimeter security fence, gates in the security fence, waterside barriers, guard shack, "Restricted Area" and "No Drone" signs, lighting fixtures, and cameras. The plan shall be submitted prior to final layberth acceptance to MARAD Coordination Center (MCC) and the ships. Within 30 days of any subsequent change the Contractor shall submit three copies of the revised plan to the Government for approval before final layberth acceptance.
9. **Privately Owned Vehicles (POV).** POVs are not allowed on MARAD vessels. Vehicles properly designated and authorized/approved as cargo are exempt. Ships and maintenance contractors shall make every effort to coordinate the use of appropriate material handling equipment (MHE) for the loading/offloading of contractor supplied tools and repair parts/materials. If use of MHE is not feasible, contractor commercial vehicles may be

allowed on MARAD vessels, at the Master's discretion, for an absolute minimum period for the sole purpose of offloading/loading tools and repair parts/materials. All MHE and commercial vehicles must be screened IAW C-12(A)5(g) before being allowed through the layberth access control point.

10. **Mail and Deliveries.** The Contractor shall provide an area for the receipt of mail or other small packages.

C-13 CONTRACT PRICE

(A) The price shall include the cost of providing all items in Section C and H.4 (Indemnity and Insurance) except for items identified in Section C-14. Section C identifies specific items for which the Contractor must bear all costs. Certain items are specifically identified in Section C for emphasis only. Contractors must include all items in Section C (except Section C-14) and Section H.4 in the per diem berthing fee including but not limited to:

1. A safe berth (including resilient fenders), adequate to provide a safe mooring.
2. Casualty, accident and liability insurance, as specified in Section H.4.
3. All handling charges and fees for reimbursable services.
4. Costs related to upgrading the offered facility and installing separate electric power lines, transformers, and meters. These include, but are not limited to, costs billed by power companies on a monthly basis or paid in a lump sum to cover the installation of power lines, transformers and meters, and costs incurred directly by the Contractor to install the power lines, transformers and meters.

(B) When vessels leave and return to the layberth, the prices for connecting and disconnecting power, telephones, water, and sewer are separate line items that are not part of the per-diem rate and are paid according to the rates specified.

(C) Security services, per day, when a ship is at layberth facilities.

C-14 REIMBURSABLE SERVICES

- (A) Reimbursable services agreed to by the Government shall be paid by the Contractor and reimbursed by the Government.
- (B) Electrical power that is consumed shall be measured on the local electric company's meter. The Government will order reimbursable electric power service from the Contractor if the Contractor obtains a commitment from the power company to exempt the layberth's electric service from taxes. In the event the Contractor is unable to obtain tax-free electrical services, the Government may at its discretion contract directly for the services or order the reimbursable electric power from the Contractor, notwithstanding the tax consequence.

- (C) Water and sewage cost will be reimbursed by the Government based on the public utility bill.
- (D) Trash removal will be reimbursed by the Government for services in excess of the requirements identified in C-4(B) 8.
- (E) Recycling services will be reimbursed by the Government for services in excess of the requirements identified in C-4(B) 9.

SECTION D: PACKAGING & MARKING

(None)

SECTION E: INSPECTION AND ACCEPTANCE

E.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

Also, the full text of a clause may be accessed electronically at this/these address(es):

<http://acquisition.gov/>

Clause	Title	Date
52.246-05 Inspection of Services—Cost Reimbursement	April 1984 (applies to reimbursable services)	52.246-04 Inspection of Services -Fixed Price
		August 1996

E.2 DELEGATION OF AUTHORITY FOR INSPECTION AND ACCEPTANCE The Contracting Officer's Representative shall be delegated the responsibility and authority to conduct inspection and acceptance duties for this contract.

E.3 PLACE OF INSPECTION AND ACCEPTANCE

Inspection will be performed at the point of delivery set forth in Section F. Acceptance will be performed at the points of delivery set forth in Section F.

E.4 INSPECTIONS

(A) The Government or other persons authorized by the Government, at its expense, shall have the right to inspect at any time, upon reasonable notice to the Contractor, and to jointly survey the facility to ascertain its material condition and to perform other contract quality assurance functions as deemed necessary and appropriate by the Government. Inspections of layberth maintenance, preservation, cleanliness, records, technical documentation, and operating procedures shall be conducted from time to time to verify that accomplishment of services meet the requirements of this contract.

(B) Except as specified in paragraph (c) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicates with

Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(C) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise granted in writing by him or included as part of this contract.

E.5 FINAL ACCEPTANCE

Final acceptance of all services provided under this contract shall be made only upon certification of the Final Invoice as defined in the invoicing provisions contained in Section G. Such certification shall be made by the Contracting Officer or the designated representative.

E.6 SOUNDINGS

Any references in this contract or solicitation to E.6 Soundings refer to this clause.

The Contractor shall provide Multi-beam Echo type soundings prior to the start date of the contract. If the option year(s) is (are) exercised the Contractor shall provide soundings to the Government once each year. If movement of the vessel is required to conduct the initial survey, all costs associated with moving the vessels, including the cost of the temporary berth, shall be at the contractor's expense. If deficiencies are discovered in any of these soundings the Contractor shall also provide soundings following actions taken to remedy the said deficiencies.

The soundings are to be taken with a Multi-beam Echo sounding system. Swath coverage between 89° to 181°, frequency between 159 - 461 kHz, and use of a differential Global Positioning System (GPS) for positioning. The use of vessel motion and sound velocity sensors must be utilized to maximize accuracy of the soundings. Soundings must be corrected to show depths at the NOAA chart datum and print-out must show bottom characteristics. Soundings of the entire length of the berth to 75 feet beyond the furthest outboard vessel must be shown. The soundings must be in a three dimensional, as well as a standard linear format.

These soundings are to be scheduled when the vessel(s) is (are) away from the berth and taken at a time agreed to between the Government and the Contractor, but not later than the Contract Start Date in the contract's base period and no later than 60 days after the start date of any option year exercised (if the multi-year alternate is awarded soundings must be performed within the first 60 days of start of the second and third program year). Soundings shall be submitted to the Government within two weeks of completion of the survey.

SECTION F: Deliveries or Performance**F.1 LIQUIDATED DAMAGES**

- (a) If the Contractor fails to deliver the supplies or perform the services within the time specified in this contract, the Contractor shall, in place of actual damages, pay to the Government liquidated damages of \$14,454 per calendar day of delay plus a lump sum amount of \$44,984.00 per incident that requires the vessel to move for tugs, line handlers, agent contractor, manager, pilot and inspection services.
- (b) If the Government terminates this contract in whole or in part under the Default-Fixed- Price Supply and Service clause, the Contractor is liable for liquidated damages accruing until the Government reasonably obtains delivery or performance of similar supplies or services. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.
- (c) The Contractor will not be charged with liquidated damages when the delay in delivery or performance is beyond the control and without the fault or negligence of the Contractor as defined in the Default-Fixed-Price Supply and Service clause in this contract.

F.2 PLACE OF PERFORMANCE

The vessels shall be layberthed on the U.S. West Coast between San Diego as the Southern extremity to the state of Washington including Puget Sound, and the Columbia River inclusive of navigable waterways that can support the safe berthing and navigation of the size vessel identified. For potential sources located on inland waterways the distance to open waters must not exceed 150 miles. tip of
Vessels can be berthed at separate facilities but must be no more than five (5) miles apart.

The specific location, name, and number of the berth for the vessel(s) at the contractor's facility is given below:

VESSEL 1 -

(5-YEAR)

BERTH _____

NESTED OUTBOARD: ____YES____NO

VESSEL 2 -
(5-YEAR)

BERTH _____

NESTED OUTBOARD: __YES __NO

SECTION G: INVOICE REQUIREMENTS - Electronic Submission of Payment Requests

G.1 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS

(a) Definitions. As used in this clause—

- (1) Contract financing payment has the meaning given in FAR 32.001.
 - (2) Payment request means a bill, voucher, invoice, or request for contract financing payment or invoice payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), “Content of Invoices,” this clause, and the applicable Payment clause included in this contract.
 - (3) Electronic form means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests.
 - (4) Invoice payment has the meaning given in FAR 32.001.
- (b) Electronic payment requests. Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Governmentwide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.
 - (c) The Department of Transportation utilizes the Delphi eInvoicing web-portal for processing invoices. For vendors submitting invoices, and certain grantees submitting payment requests, they will be required to submit invoices via Delphi eInvoicing which is accessed and authenticated via www.login.gov
 - (d) The following FAR section applies (32.905 Payment documentation and process). In order to receive payment and in accordance with the Prompt Payment Act, all invoices submitted as attachments in the Delphi eInvoicing web-portal shall contain the following:

- (e) General. Payment will be based on receipt of a proper invoice and satisfactory contract performance.
- (f) Content of invoices.
- (1) A PROPER INVOICE MUST INCLUDE THE FOLLOWING ITEMS (except for interim payments on cost reimbursement contracts for services):
 - (i) Name and address of the contractor.
 - (ii) Invoice date and invoice number. (Date invoices as close as possible to the date of mailing or transmission.)
 - (iii) Contract number or other authorization for supplies delivered or services performed (including order number and contract line item number).
 - (iv) Description, quantity, unit of measure, unit price and extended price of supplies delivered or services performed.
 - (v) Shipping and payment terms (e.g., shipment number and date of shipment, discount for prompt payment terms). Bill of lading number and weight of shipment will be shown for shipments on Government bills of lading.
 - (vi) Name and address of contractor official to whom payment is to be sent (must be the same as that in the contract or in a proper notice of assignment).
 - (vii) Name (where practicable), title, phone number and mailing address of person to notify in the event of a defective invoice.
- (g) Payment system registration. All persons accessing the Delphi eInvoicing web-portal will be required to have their own unique user Delphi eInvoicing ID and password and be credentialed through login.gov.
 - (1) Electronic authentication. See www.login.gov for instructions. Click on the following link for instructions on establishing a login.gov account:
<https://login.gov/help/creating-an-account/how-do-i-create-an-account-with-login.gov/>.
 - (2) To create a login.gov account, the user will need a valid email address and a working phone number. The user will create a password and then login.gov will reply with an email confirming the email address.
 - (3) Agency POC's will be responsible for communicating with vendor POC's to initiate the Delphi eInvoicing account creation process. Vendor POC's who will require access to the eInvoicing web-portal for invoice submission and payment tracking purposes will be required to provide their full name, valid email address, and current phone number to the agency POC to initiate the Delphi eInvoicing web-portal account. Vendor users and the agency POC will be notified via e-mail when the account is created. The vendor user will be provided detailed instructions for logging into their Delphi eInvoicing account.
 - (4) Training on Delphi. To facilitate use of DELPHI, comprehensive user information is available at <http://einvoice.esc.gov>
 - (5) Account Management. Vendors are responsible to contact the Delphi Help Desk when their firm's points of contacts will no longer be submitting invoices so they can be removed from the system. Instructions for contacting the Delphi Help Desk can be found at <http://einvoice.esc.gov>

Point of Contact:

Contracting Officer: Ken.Egbuna@dot.gov

Vendor coordinator:

Primary: Felicia Eberling:

Felicia.Eberling@dot.gov Alternate: Henry

Puppe: Henry.Puppe@dot.gov

SECTION H. SPECIAL CONTRACT REQUIREMENTS

H.1 DUPLICATION OF EFFORT

The Contractor hereby certifies that cost for work to be performed under this contract and any subcontract hereunder are not duplicative of any costs charged against any other Government contract, subcontract, or other Government source. The Contractor will include the provisions of this paragraph in every subcontract issued hereunder which exceeds \$2,500.00. The Contractor agrees to advise the Contracting Officer, in writing, of any other Government contract or subcontract it has performed or is performing which involves work directly related to the purpose of this contract.

H.2 ACTIVATION OF GOVERNMENT VESSELS

The Contractor agrees to cooperate, upon reasonable notice, in the activation of any Government vessel by permitting such activation to take place at the subject pier. The Government may move the vessel for drydocking, shipyard work, or any other purposes, and return the vessel to said berth upon completion for the duration of this contract.

H.3 CONTRACT NOT AFFECTED BY ORAL AGREEMENT

No oral agreement of any person shall modify or otherwise affect the Scope of Work or other terms and conditions, as herein stated. All modifications shall be in writing by the Contracting Officer.

H.4 INDEMNITY AND INSURANCE

Any references in this contract or solicitation to H.4 refer to this clause.

I INDEMNITY

1. The Contractor is expected to exercise reasonable care and use its best efforts to prevent accidents, injury or damage to all employees, persons and property and the Contractor shall at its own expense procure and therefore maintain liability insurance for loss exposure while the Government owned vessel is being moored or berthed or during the time period when the Government owned vessel is moored or berthed including departures from moorings or berths.

2. Except as provided elsewhere in this contract, the Administration assumes the risk of physical loss or damage to any part of the vessel, its machinery, equipment, stores, and other property including cargo if owned by the United States except to the extent that such loss or damage is caused by the negligence, fault, error, act or omission of the Contractor, or the Contractor's subcontractors, agent, or employees.
3. As to third parties, including but not limited to, agents, employees or servants of the Contractor, or any of its subcontractors, the Contractor will defend, indemnify and hold harmless the United States, the vessel, its owner and charters, from all claims, action, suits, costs, demands and expense of all descriptions arising out of disease, illness, personal injury, death or property damage to any third party in any way related to or arising out of the performance of work under this contract except to the extent caused by the fault, error, act or omission, or negligence of the United States, its agencies or employees. The burden of proving fault of the United States, its agencies or employees shall be borne by the Contractor.
4. As to loss and damage which are the responsibility of the United States, the United States shall be subrogated to any claim demand, or cause of action against third parties which exists in favor of the Contractor, and the Contractor shall, if required, execute a formal assignment or transfer of such claim, demand, or cause of action, and shall aid in securing information, evidence, obtaining of witnesses, and cooperate with the Administration in all matters which the Administration may deem necessary in defense of any claim, or suit or appeal from any judgment or in effecting indemnity, provided, further, that nothing contained in this paragraph shall create or give rise to any right, privilege or power in any person except the Contractor, nor shall any person (except the Contractor) be or become entitled thereby to proceed directly against the United States, its agencies or instrumentalities, or join the United States, its agencies or instrumentalities, as a codefendant in any action against the Contractor brought to determine the Contractor's liability or for any other purpose.

II INSURANCE

- (a) In expectation that vessel movements or sailing itineraries are likely to require frequent mooring and berthing activities:
- (b) The Contractor shall certify to the Contracting Officer in writing that the required insurance contained within subpart III below has been obtained for a vessel when any activation of such vessel occurs. The policies evidencing required insurance shall contain an endorsement to the effect that any cancellation or any material change adversely affecting the Government's interest shall not be effective (1) for such period as the laws of the State in which the contract is to be performed, prescribed or (2) until thirty (30) calendar days after the insurer or the Contractor gives written notice to the Contracting Officer, whichever period is longer.
- (c) The Contractor shall insert the substance of this clause, including this paragraph (c), in subcontracts under this contract that require mooring and berthing activities of a Government vessel and shall require subcontractors to provide and maintain the insurance required in the Schedule or

elsewhere in the contract. At least five (5) calendar days before entry of each such subcontractor's personnel on the Government

installation, the Contractor shall furnish (or ensure that there has been furnished) to the Contracting Officer a current certificate of insurance, meeting the requirements of paragraph (b) above, for each subcontractor.

III TYPES OF INSURANCE AND MINIMUM COVERAGE

Type of Insurance	Minimum Coverage Requirements
--Workmen's Compensation, State or minimum; And Federal Statutes, including Longshoremen's and Harbor Worker's Act	No maximum
--Other Employer's Liability	\$5,000,000 per accident, or occurrence;
--Wharfingers Liability Policy	\$5,000,000 per vessel, or occurrence
--General (Public)	\$5,000,000 per Liability accident or Liability occurrence.
--Pollution – Sudden and Accidental	\$5,000,000 per Liability accident or Liability occurrence

All such insurance shall be subject to the approval of the Director, Office of Marine Insurance Maritime Administration, and will contain thirty (30) calendar days advance notice of cancellation or of any nonrenewal which is the option of the insurer, said notice to be provided to the Chief, Office of Financial Approvals and Marine Insurance (MAR-712) Maritime Administration, US Department of Transportation, 1200 New Jersey Ave. SE W23- 313 Washington, DC 20590.

IV FORM OF CONFIRMATION

The Contractor shall have its insurance broker provide a detailed certificate of insurance, cover note or policy confirming the above required coverage's. Such confirmation shall name the Contractor as an assured and confirm the types of coverage, policy forms, policy periods, deductibles (if any) and under-writers with their percentage of participation. The N.Y. Suable Clause or Service of Suit U.S.A. Clause must be confirmed for any London underwriter placements. The confirmation shall list the applicable vessel(s) and confirm the aforementioned 30-day cancellation notice with no disclaimer. The confirmation must be signed and dated by the broker and the Maritime Administration shall have the right to receive all original policies at the Contractor's expense should the agency deem it necessary and so notifies the Contractor. The policy amounts, terms and conditions, deductibles an underwriters shall at all times be satisfactory to the Maritime Administration and are due prior to vessel placement and the exercise of any option.

H.5 SUBSTITUTION OF VESSELS

- (a) The Government reserves the right to occupy the layberth for the duration of this contract with any of the RRF or any other Government vessel(s), the number of such vessels to be limited to that stipulated in this contract, such right to be exercised at the sole discretion and convenience of the Government. If either the length overall, or beam, or approximate draft at berth of the vessel substituted by the Government exceed the dimensions for those characteristics stated in Attachment 1 of Section J, as applicable, the Contractor shall be entitled to an equitable adjustment for any increase or decrease in the Contractor's cost of, or the time required for, the performance of any part of the work under this contract caused by the government's substitution.
- (b) In the event the operational schedule of the RRF requires the absence of the vessel(s) from the layberth for a continuous period of more than thirty days, the Contractor may, upon written notice to the Contracting Officer, utilize the subject layberth for the mooring of nongovernment vessels as a commercial enterprise during such absent periods. The Contractor agrees that the Government shall, during such periods, receive per diem reimbursement equal to half of the value of the commercial per diem receipts. The provisions of this paragraph shall in no way preclude the Government from exercising its right pursuant to paragraph (a) above.
- (c) During any period of commercial utilization, the Contractor shall maintain the facility in such a manner that precludes imperiling the maintenance standards established by this contract upon return of the Government vessel to the facility. Failure to do so shall be subject to the provision of clause H-7 REDUCTION IN CONTRACT PRICE.

H.6 EXCLUSIVE USE OF FACILITIES

The Contractor grants the government exclusive use of the berth and associated apron as described in C.4. (A) for the duration of the contract. This clause does not affect the Contractor's right under FAR 52.249-2 Termination for the Convenience of the Government (Fixed-Price).

H.7 REDUCTION IN CONTRACT PRICE

- (a) In the event that the layberth becomes unfit for the safe berthing of the vessel, or the Contractor becomes unable to control access to or security of the facility for any reason due to the fault of the Government or the Government's other contractors, or in the event the Contractor fails to maintain the facility to the standards required by the terms of this contract, the per diem rates specified in Section B shall be reduced for each day that the facility is unfit or the Contractor has failed to comply with the requirements set forth above and elsewhere in this contract, by an amount to be determined by the Contracting Officer to reflect the reduced value of the facility to the Government. In no event will the amount of the reduction exceed the Contractor's per diem rate specified in Section B of this contract. In the event that the pier becomes unsafe or unusable and the Government is required to move the vessel(s) to a safe berth, not due to the fault of the Government or the Government's other contractors, payment of the per diem rate specified in Section B of this contract shall cease entirely until such time as the pier becomes safe and the vessel(s) is able to resume layberth at "the berth". In addition, the Contractor shall be liable for liquidated damages during this period as described in paragraph (b) below.

The pier(s) shall be ready for service and shall be tendered in accordance with Section F by the date of commencement of this contract. If, in the opinion of the Government, the pier is not ready to commence service or becomes unacceptable during the contract period, the Contractor shall pay the Government the liquidated damages set forth in paragraph F.1. The provisions of this paragraph and (a) above shall in no way preclude the Government from exercising its rights pursuant to any other provisions of this contract.

H.8 INSTALLATION/ REPAIR/ MAINTENANCE OF FACILITIES OR SHORE SERVICES

Costs for the installation, repair and /or maintenance of the facilities and shore services used by the Contractor to perform the services required by the contract, unless otherwise stated in the contract, are the sole responsibility of the Contractor and not reimbursable

under this contract. This clause does not affect the Contractor's right under FAR 52.249- 2 Termination for the Convenience of the Government (Fixed-Price) clause.

H.9 OWNERSHIP / USE OF FACILITIES FOR THE CONTRACT PERIOD

The Contractor has a legally enforceable right to the possession of the facilities required to provide the layberthing services required by the contract. The Contractor shall submit a title or lease that demonstrates this right prior to award of this contract. The contractor shall notify the Contracting Officer in writing whenever it has reason to believe that a change in its legally enforceable right to possession of the facilities will occur.

H.10 DESIGN / ALTERATIONS OF FACILITIES OR FENDERING SYSTEMS

Costs for any and all design(s) of and /or alteration(s) to facilities and /or fendering systems which provide the layberthing services required by the contract are the sole responsibility of the Contractor and are not reimbursable under the contract.

H.11 NOTICE OF TERMINATION- OPTION YEARS

In the event this contract is terminated for the convenience of the Government under clause FAR 52.249-4 which clause applies to any and all option years exercised under this contract the Contracting Officer shall provide the written notice required by the said clause at least thirty (30) days prior to the effective date of the termination.

H.12 MINIMUM AND MAXIMUM QUANTITIES

The minimum quantity to be ordered by the Government shall be for the layberthing of one vessel.

- a. 365 days (366 days if a leap year) at the berthage per diem unit price of 1 vessel.
- b. One connect cycle and one disconnect cycle for ship to shore electric power, potable water and telephone.
- c. The total reimbursable services for electrical power, potable water and telephone incurred by one vessel or the individual "Bulk (BN)" which is equivalent to a 'NOT TO EXCEED' amount stated in each of the applicable sub line items whichever is less. If the contractor is unable to obtain a commitment from the power company to exempt taxes from the contractor's monthly electricity service charges, MARAD may at its discretion elect to contract directly with the utility company.

SECTION I – CONTRACT CLAUSES AND PROVISIONS

I.1 CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE

This contract incorporates one or more clauses and provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): <https://www.acquisition.gov/>

Provisions Title Dates

52.204-7 System for Award Management NOV 2024
 52.204-16 Commercial and Government Entity Code Reporting Aug 2020 52.209-7 Information Regarding Responsibility matters Oct 2018
 52.215-1 Instructions to Offerors – Competitive Acquisition NOV 2021
 52.215-20 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data NOV 2021
 52.215-21 Requirements for Certified Cost or Pricing Data-Modifications NOV 2021

Clauses Title Date

52.202-01 Definitions June 2020
 52.203-03 Gratuities April 1984
 52.203-05 Covenant Against Contingent Fees May 2014
 52.203-06 Restrictions on Subcontractor Sales to the Government June 2020
 52.203-07 Anti-Kickback Procedures June 2020
 52.203-08 Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity May 2014
 52.203-10 Price or Fee Adjustment for Illegal or Improper Activity May 2014
 52.203-12 Limitation on Payments to Influence Certain Federal Transactions June 2020
 52.203-17 Contractor Employee Whistleblower Rights and Requirement to Inform Employees of Whistleblower Rights June 2020
 52.204-04 Printed or Copied Double-Sided on Recycled Paper. May 2011
 52.204-09 Personal Identity Verification of Contractor Personnel January 2011
 52.204-10 Reporting Executive Compensation and First-Tier Subcontract Awards June 2020
 52.204-13 System for Award Management Maintenance Oct 2018
 52.204-18 Commercial and Government Entity Code Maintenance Aug 2020
 52.204-19 Incorporation by Reference of Representations and Certifications Dec 2014
 52.209-06 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment June 2020
 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations Nov 2015
 52.216-07 Allowable Cost and Payment August 2018 (applies to reimbursable services only)
 52.216-11 Cost Contract -- No Fee April 1984 (applies to reimbursable services only) 52.216-18 Ordering
 52.216-19 Order Limitations
 52.216-22 Indefinite Quantity
 52.216-22 Indefinite Quantity (Oct 1995)
 52.219-06 Notice of Total Small Business Set-Aside Nov 2020
 52.219-08 Utilization of Small Business Concerns Oct 2018
 52.219-14 Limitations on Subcontracting Mar 2020
 52.219-28 Post-Award Small Business Program Representation Nov 2020
 52.222-03 Convict Labor June 2003
 52.222-35 Equal Opportunity for Veterans Jun 2020
 52.222-36 Affirmative Action for Workers with Disabilities Jun 2020

52.222-37 Employment Reports on Veterans (Jun 2020)
52.222-50 Combating Trafficking in Persons (Oct 2020)
52.222-54 Employment Eligibility Verification (October 2015)
52.223-06 Drug-Free Workplace May 2001
52.223-10 Waste Reduction Program. May 2011
52.223-18 Encouraging Contractor Policies to Ban Text Messaging While Driving (Jun 2020)
52.225- 13 Restrictions on Certain Foreign Purchases Feb 2021
52.229-03 Federal, State, and Local Taxes February 2013
52.232-01 Payments (April 1984)
52.232-08 Discounts for Prompt Payment (February 2002)
52.232-11 Extras (April 1984)
52.232-17 Interest (May 2014)
52.232-18 Availability of Funds (April 1984)
52.232-20 Limitation of Cost April 1984 (applies to reimbursable services only)
52.232-22 Limitation of Funds April 1984 (applies to reimbursable services only)
52.232-23 Assignment of Claims (May 2014)
52.232-25 Prompt Payment (January 2017) 52.232-33 Payment by Electronic Funds Transfer-System for Award Management (Oct 2018) 52.232-40 Providing Accelerated Payments to Small Business Subcontractors (December 2013)
52.233-01 Disputes (May 2014) - Alternate I December 1991
52.233-03 Protest after Award (August 1996)
52.233-04 Applicable Law for Breach of Contract Claim (October 2004)
52.237-02 Protection of Government Buildings, Equipment, and Vegetation (April 1984)
52.237-03 Continuity of Services (January 1991)
52.242-01 Notice of Intent to Disallow Costs (April 1984) (applies to reimbursable services only)
52.242- 03 Penalties for Unallowable Costs (May 2014) (applies to reimbursable services only)
52.242-13 Bankruptcy (July 1995)
52.243-01 Changes-Fixed-Price (August 1987) Alternate I April 1984
52.243-02 Changes-Cost-Reimbursement (August 1987) Alternate I April 1984 (applies to reimbursable services only)
52.244-02 Subcontracts (June 2020)
52.245-01 Government Property (January 2017)
52.246-25 Limitation of Liability--Services (February 1997)
52.248-01 Value Engineering (Jun 2020)
52.249-04 Termination for Convenience of the Government (Services) (Short Form) (April 1984)
52.249-06 Termination (Cost-Reimbursement) (May 2004) (applies to reimbursable services only)
52.249-08 Default (Fixed-Price Supply and Service) (April 1984)
52.249-14 Excusable Delays (April 1984)

TAR 1252.223-73 Seat Belt Use Policies and Programs May 2005
TAR 1252.223-71 Accident and Fire Reporting May 2005
TAR 1252.232 70 Electronic Submission of Payment Requests [(DEVIATION) (AUG 2025)]
TAR 1252.232 71 Submission of Invoices (NOV 2022)
TAR 1252.237-70 Qualifications of Employees May 2005
TAR 1252.242-71 Contractor Testimony October 1994
TAR 1252.242-73 Contracting Officer's Technical Representative October 1994
TAR 1252.245-70 Government Property Reports October 1994

I.2 CLAUSES IN FULL TEXT

52.216-21 REQUIREMENTS OCTOBER 1995

(a) This is a requirements contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies or services specified in the Schedule are estimates only and are not purchased by this contract. Except as this contract may otherwise provide, if the Government's requirements do not result in orders in the quantities described as "estimated" or "maximum" in the Schedule, that fact shall not constitute the basis for an equitable price adjustment.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. Subject to any limitations in the Order Limitations clause or elsewhere in this contract, the Contractor shall furnish to the Government all supplies or services specified in the Schedule and called for by orders issued in accordance with the Ordering clause. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(c) Except as this contract otherwise provides, the Government shall order from the Contractor all the supplies or services specified in the Schedule that are required to be purchased by the Government activity or activities specified in the Schedule.

(d) The Government is not required to purchase from the Contractor requirements in excess of any limit on total orders under this contract.

(e) If the Government urgently requires delivery of any quantity of an item before the earliest date that delivery may be specified under this contract, and if the Contractor will not accept an order providing for the accelerated delivery, the Government may acquire the urgently required goods or services from another source.

(f) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after
04/15/2036.

(End of Clause)

52.216-18 ORDERING August 2020

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from *04/16/2026 to 04/15/2036*.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) If mailed, a delivery order or task order is considered "issued" when the Government deposits the order in the mail. Orders may be issued orally, by facsimile, or by electronic commerce methods only if authorized in the Schedule.

(End of Clause)

SPECIAL CONTRACT REQUIREMENTS

Until such time as this contract is fully funded, Clause 52.232-20 "Limitation of Cost" shall be ineffective and Clause 52.232-22, "Limitation of Funds" shall apply. At such time as this contract is fully funded, said Clause 52.232-20 shall become fully effective and applicable in lieu of Clause 52.232-22.

52.217-8 OPTION TO EXTEND SERVICES NOVEMBER 1999

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 170 days from the last day of the last-exercised FAR-52.217-09-Option period.

52.217-09 OPTION TO EXTEND THE TERM OF THE CONTRACT MARCH 2000

(a) The Government may extend the term of this contract by written notice to the Contractor within 1 day of the contract expiration date; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months if the Government uses the first BSC and/or the third BSC-or 126 months if the Government elects to use the second BSC and/or the fourth BSC.

52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT
STATUTES OR EXECUTIVE ORDERS — COMMERCIAL PRODUCTS AND COMMERCIAL
SERVICES (OCT 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated by reference in this contract:

(b) The following clauses apply to this contract:

- (b)(1) Anti-Kickback Procedures (41 U.S.C. 8702) (Applicable if contract exceeds \$150,000)
- (b)(2) Audit and Records—Negotiation (FAR 52.215-2) (Applicable if contract exceeds \$150,000)
- (b)(3) Availability of Funds (31 U.S.C. 1341)
- (b)(4) Reporting Executive Compensation and First-Tier Subcontract Awards (Pub. L. 109-282)
- (b)(5) Payment for Overtime Premiums (FAR 52.222-2) (If authorized overtime applies)
- (b)(7) Contractor Code of Business Ethics and Conduct (FAR 52.203-13) (Applicable if contract exceeds \$5,000,000)
- (b)(8) Utilization of Small Business Concerns
- (b)(9) Buy American Act - Supplies (41 U.S.C. 10a–10d)
- (b)(10) Buy American Act - Construction Materials (41 U.S.C. 10a–10d)
- (b)(14) Equal Opportunity for Veterans (38 U.S.C. 4212)
- (b)(15) Equal Opportunity for Workers with Disabilities (29 U.S.C. 793)
- (b)(22) Combating Trafficking in Persons (22 U.S.C. 7104(g))
- (b)(27) Encouraging Contractor Policies to Ban Text-Messaging While Driving
- (b)(38) Restrictions on Certain Foreign Purchases (FAR 52.225-13)
- (b)(44) Contractor Identification Number (Unique Entity ID)
- (b)(45) Payment by Electronic Funds Transfer—System for Award Management (31 U.S.C. 3332)
- (b)(48) Preference for Privately Owned U.S.-Flag Commercial Vessels (46 U.S.C. 501, 40 U.S.C. 263a)
- (b) (If applicable) The Contractor shall comply with additional clauses as incorporated by agency supplements or other statutes relevant to this acquisition.

Section J List of Attachments

J.1 List of Attachments

PART III - LIST OF DOCUMENTS,
EXHIBITS AND OTHER
ATTACHMENTSSECTION J - LIST OF ATTACHMENTS

1. Attachment 1: Characteristics of the WATSON
CLASS LMSR
CHARACTERISTICS
2. Attachment 2: Electrical rates (\$/KWH) for
determining Annual Electrical costs
3. Attachment 3: Deliverable Document Requirements

J.1 Attachment 1 - Characteristics of the LMSR Vessels WATSON Class

LENGTH OVERALL:	950'0"	
LENGTH BETWEEN PERPENDICULARS:	905' 0"	
BEAM:	105'- 09"	
ESTIMATED DRAFT AT BERTH:	23'- 6.5" FWD 25'- 5.2" Aft	
MAST HEIGHT (FOLDED) (ABL)	162'-11"	TWIN CRANE
	157'-6.26' ABL	
	155'- 4.26" ABL	
ESTIMATED AIR DRAFT	134'11"	
DISPLACEMENT, LOADED:	62,945 L/T	
LIGHTSHIP DISPLACEMENT:	33,723 L/T	
DEADWEIGHT:	28,067 L/T	
REQUIRED AMPERAGE:	2,400 AMPS	
REQUIRED VOLTAGE:	450 VOLTS, 60 Hertz	
ESTIMATED DAILY KWH USAGE:	11,500	
REQUIRED MOORED POSITION:	PORT OR STARBOARD SIDE-TO.	
SHIPS STORES CRANES:	FRAME 115	
CAPACITY:	5 L/T @ 50' RADIOUS	
ACCOMMODATION LADDER:		
LOCATION:	APPROX 425' FWD OF THE STERN	
HEIGHT OF SHIP ENTRY:	90' 4"	
SIDEPORT THRESHOLD HEIGHT	60'-07"	
SIDEPORT LOCATION	PORT AND STARBOARD SIDE APPRX 590' TO 640' FWD OF THE STERN	
SIDEPORT PLATFORM	50' L X 40' W SIDEPORT (48' L X 40'W)	
DISTANCE OVER THE PIER	90' FROM CENTERLINE	

SIDEPORT RAMP POSITIONING:

PARALLEL, FORWARD LEAD (WITH RESPECT TO CENTER LINE) PARALLEL, AFT LEAD (WITH RESPECT TO CENTER LINE) PERPENDICULAR (WITH RESPECT TO CENTER LINE).

SIDEPORT RAMP CONFIGURATION

SHORT
MEDIUM
LONG

Length does not include ramp foot. Ramp foot extends 17'7" beyond end of ramp.

32' long, 35 L/T

87'7" long, 55 L/T

82'7" long, APPRX 110 L/T

SIDEPORT RAMP BASE (FOOT)

32' L x 28'7" W

CAPACITY (FOOT)

500 PSF (side ramp foot)

SLEWING STERN RAMP

STERN RAMP POSITIONING

DEAD ASTERN OR 39° TO PORT OR STARBOARD

RAMP ARTICULATION

MAXIMUM ANGLE OF 39°

MINIMUM CLEAR ROADWAY

24 Ft.

FULLY EXTENDED

135 feet long.

STERN RAMP FOOT

26' L x 30' W

CAPACITY (RAMP FOOT)

500 PSF

ATTACHMENT 2
Electrical Rates for Determining Annual Electrical Cost

J.2 Attachment 2: Electrical Rates for Determining Annual

Electrical Cost National Index of Electrical Rates for Determining

Annual Electrical Costs

The average state commercial rates are taken from the Comprehensive State Energy profiles of the Energy Information Administration. Average Retail Price of Electricity to Ultimate Customers by End-Use Sector, by State, December 2023. Rates were found at https://www.eia.gov/electricity/monthly/epm_table_grapher.php?t=epmt_5_6_a

The table below shows Average Retail Price of Electricity to Ultimate Customers by End-Use Sector, by State, December 2023 (Cents per Kilowatthour)

State	Commercial \$/KWH
California	\$0.2734
Oregon	\$0.1048
Washington	\$0.1060

ATTACHMENT 3

Deliverable Document Requirements

J.3. Attachment 3: Deliverable Document Requirements

1) Heavy Weather Mooring Plan, as required per C-7 and C-9.

Minimum required contents of the Heavy Weather

Mooring Plan: Executive Summary:

- Purpose and scope of study
- Summary of key finding and recommendations

Introduction/Background Section:

- General description, Vessel configuration (single or nested) as well as key particulars
- Design criteria for wind, tide, and current
- Location and details of pier (google earth or other); necessary drawings to be included in the appendix
- Software used
- Analysis methodology

Mooring Arrangement Section:

- Arrangement, condition, strength and type of mooring equipment, lines and fittings – for both the vessel and pier.

Analysis Section:

- Modeling details: vessel condition, pre-tensions, source of data
- List of assumptions with justification
- Results summarized in tables and graphs as

appropriate Conclusion Section

Appendices:

- Drawings
- Model Graphics
- Fender Loads
- Moorin

g Hardware

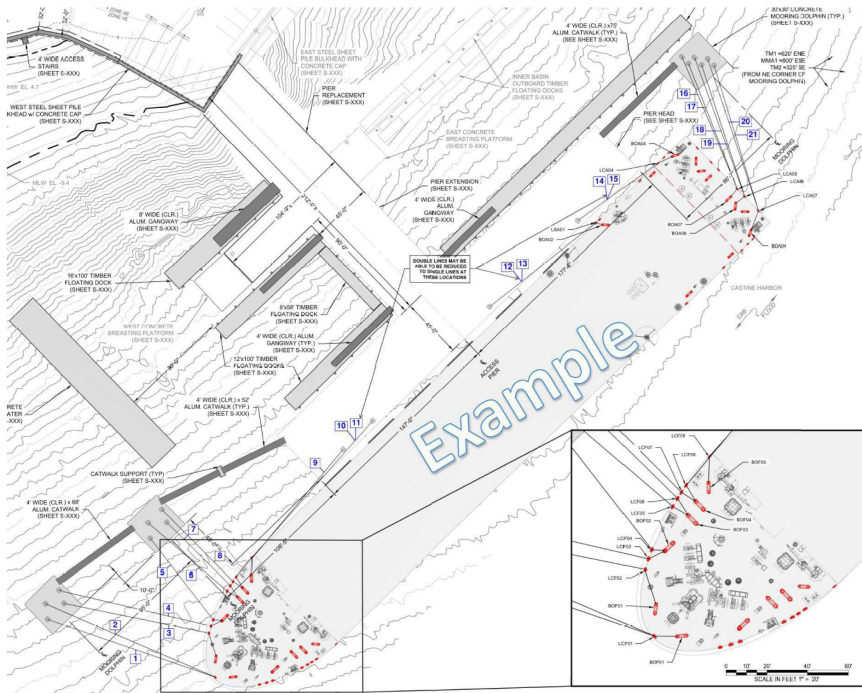
References

Examples of details:

Table 4 Summary of maximum extreme line tensions

Analysis	MBS (kips)	Line Type	Maximum Load (kips)	Line(s)	Safety Factor
50-year Event Static	170	Cortland 2.5" double-braided polyester	43	Spring ASP1A/1B	3.93
	170	Cortland 2.5" double-braided polyester	57	Bow Bow2A/2B	3.00
	170	Cortland 2.5" double-braided polyester	49	Stem Stem3A/3B	3.48
Category I Dynamic	170	Cortland 2.5" double-braided polyester	110	Spring ASP1A/1B	1.55
	170	Cortland 2.5" double-braided polyester	107	Bow Bow2A/2B	1.59
	180.9	Cortland 2.5" double-braided nylon	110	Bow Bow3A/3B	1.64
	170	Cortland 2.5" double-braided polyester	115	Stem Stem3A/3B	1.48

BERTH 206 - BOB HOPE CLASS LMSR - MOORING LINE TABLE						
MOORING PT.	LINE #	SIZE (IN)	TYPE	PARTS	MBS (LBS)	PRE-TENSION
BITT J	1	9	RP-12 SSR-1200	2	207,000	100
BOLLARD A	2	9	RP-12 SSR-1200	2	207,000	100
BOLLARD A	3	9	RP-12 SSR-1200	2	207,000	100
BOLLARD B	4	4.3	AMSTEEL BLUE	1	205,000	2000
BOLLARD C	5	4.3	AMSTEEL BLUE	1	205,000	2000
BOLLARD C	6	9	RP-12 SSR-1200	2	207,000	100
BOLLARD C	7	4.3	AMSTEEL BLUE	1	205,000	2000
BOLLARD C	9	4.3	AMSTEEL BLUE	1	205,000	2000
BITT P	11	11	RP-12 SSR-1200	2	306,000	100
BITT Q	12	11	RP-12 SSR-1200	2	306,000	100
BITT S	13	11	RP-12 SSR-1200	2	306,000	100
BITT T	14	11	RP-12 SSR-1200	2	306,000	100
BOLLARD G	17	4.3	AMSTEEL BLUE	1	205,000	2000
BOLLARD G	18	9	RP-12 SSR-1200	2	306,000	100
BOLLARD H	19	4.3	AMSTEEL BLUE	1	205,000	2000
BOLLARD H	20	9	RP-12 SSR-1200	2	207,000	100
BOLLARD F	22-B	4.3	AMSTEEL BLUE	1	205,000	2000
BOLLARD F	23-B	9	RP-12 SSR-1200	2	207,000	100
BOLLARD I	24-B	4.3	AMSTEEL BLUE	1	205,000	2000
BOLLARD I	26-C	9	RP-12 SSR-1200	1	207,000	100
BOLLARD I	27-C	9	RP-12 SSR-1200	1	207,000	100



50-YEAR EVENT				
Water Level at 50-year Stillwater Level				
Line Number	Line MBS ^a (kips)	Minimum Required Factor of Safety	Maximum Line Tension (kips)	Line Working Load (kips)
1	170	2.5	68.0	67.5
2	170	2.5	68.0	66.3
3	170	2.5	68.0	66.0
4	170	2.5	68.0	67.5
5	181	2.5	72.4	67.5
6	181	2.5	72.4	45.8
7	181	2.5	72.4	47.0
8	181	2.5	72.4	48.2
9	170	2.5	68.0	36.6
10	170	2.5	68.0	34.6
11	170	2.5	68.0	34.2
12	170	2.5	68.0	23.9
13	170	2.5	68.0	21.8
14	170	2.5	68.0	26.6
15	170	2.5	68.0	28.3
16	170	2.5	68.0	64.8
17	170	2.5	68.0	66.7
18	170	2.5	68.0	62.3
19	170	2.5	68.0	64.0
20	170	2.5	68.0	57.2
21	170	2.5	68.0	29.4

Note: 50-year Stillwater Level = 9.3 feet NAVD88 +/-
 Top of pier deck at EL. 14.1 feet NAVD88 +/-
 Top of mooring dolphin deck at EL. 14.1 feet NAVD88 +/-

50-YEAR EVENT				
Water Level at Extreme Low Water				
Line Number	Line MBS ^a (kips)	Minimum Required Factor of Safety	Maximum Line Tension (kips)	Line Working Load (kips)
1	170	2.5	68.0	64.3
2	170	2.5	68.0	63.2
3	170	2.5	68.0	63.2
4	170	2.5	68.0	64.7
5	181	2.5	72.4	64.8
6	181	2.5	72.4	45.4
7	181	2.5	72.4	47.8
8	181	2.5	72.4	48.2
9	170	2.5	68.0	25.3
10	170	2.5	68.0	25.3
11	170	2.5	68.0	25.3
12	170	2.5	68.0	22.7
13	170	2.5	68.0	22.7
14	170	2.5	68.0	24.7
15	170	2.5	68.0	24.6
16	170	2.5	68.0	64.2
17	170	2.5	68.0	66.2
18	170	2.5	68.0	61.7
19	170	2.5	68.0	63.4
20	170	2.5	68.0	56.1
21	170	2.5	68.0	28.4

Note: Extreme Low Water = -7.9 feet NAVD88 +/-
 Top of pier deck at EL. 14.1 feet NAVD88 +/-
 Top of mooring dolphin deck at EL. 14.1 feet NAVD88 +/-

- 2) Physical Security Plan per C-12(A) 8.
- 3) Annual Soundings per C-8(A).
- 4) Plan of Action and Milestones, as required per C-4(B).
- 5) Permit/Licenses/Leases per C-4(C).
- 6) Oil Spill Plan per C-5(A) 6.
- 7) Potable Water laboratory report per C-5(B) 3.
- 8) Mooring fitting pull test results per C-9 (A) 1.10.
- 9) Insurance per H.4 II
- 10) Ownership/Use of facilities for the contract period per H.9

SECTION K - REPRESENTATIONS & CERTIFICATIONS

K.1 FAR 52.204-7 - System for Award Management (SAM) Registration

By submitting an offer, the Offeror represents that it is registered in SAM and that all information in SAM is current, complete, and accurate, including the Offeror's Online Representations and Certifications Application (ORCA).

K.2 FAR 52.204-8 - Annual Representations and Certifications

(a) The Offeror confirms that:

1. Its Annual Reps & Certs in SAM are current.
2. The Offeror has completed all required representations referenced in SAM; and
3. These certifications are incorporated by reference into this solicitation.

(b) If any representation in SAM does not apply or cannot be completed, the Offeror shall provide supplemental information in this section.

K.3 Additional Representations Required by MARAD

The Offeror shall check all that apply:

- ☐ The Offeror is not debarred, suspended, or proposed for debarment (FAR 52.209-5).
- ☐ The Offeror is a Small Business Concern under NAICS 488320.
- ☐ The Offeror claims HUBZone status.
- ☐ The Offeror claims 8(a) status.
- ☐ The Offeror claims SDVOSB status.
- ☐ The Offeror claims WOSB/EDWOSB status.
- ☐ The Offeror is a Large Business.
- ☐ The Offeror acknowledges it must comply with FAR 52.219-14 (Limitations on Subcontracting) if applicable.

If the Offeror claims a socioeconomic status, MARAD may require verification prior to award.

K.4 Certification Regarding Responsibility Matters - FAR 52.209-5

The Offeror certifies that:

- It is not presently debarred, suspended, or proposed for debarment.
- It has not been convicted of or had civil judgment for any offenses listed in FAR 52.209-5.
- It is not delinquent on Federal taxes; and
- It has disclosed any relevant information per FAR 52.209-5.

K.5 Certification of Independent Price Determination - FAR 52.203-2

By submission of this proposal, the Offeror certifies that:

- Prices were determined independently.
- No attempt has been made to influence or collude with other offerors; and
- The Offeror has not disclosed its prices to competitors.

K.6 Authorization and Signature

I certify that the representations and certifications contained herein, and those in SAM, are current, accurate, complete, and true.

Offeror Name: _____
CAGE Code / UEI: _____
Authorized Official: _____
Title: _____

Signature: _____
Date: _____

SECTION L – INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

L.1 INTRODUCTION

This Request for Proposals (RFP) is issued in accordance with FAR Part 15, Contracting by Negotiation. Offerors shall submit proposals in accordance with the instructions provided herein. Failure to follow these instructions may result in an Unacceptable rating or elimination from consideration.

The Government intends to award a Lowest Price Technically Acceptable (LPTA) contract without discussions; however, the Government reserves the right to conduct discussions if determined necessary (FAR 15.306).

L.2 GENERAL PROPOSAL SUBMISSION INFORMATION

L.2.1 Proposal Due Date

The Government contemplates award of a 5-year IDIQ, fixed-price, cost-reimbursement, as specified in Section B.

L.2.2 Submission Method

Proposals shall be submitted via email to:

Henry Puppe, Contracting Officer
Email: henry.puppe@dot.gov

Electronic submission is required. Paper submissions will not be accepted.

L.2.3 Late Proposals

Late proposals will be handled in accordance with FAR 52.215 1(c)(3).

L.2.4 Questions

All questions shall be submitted in writing to the Contracting Officer no later than the date stated in the solicitation.

L.3 PROPOSAL ORGANIZATION

Offerors shall structure proposals in two (2) separate volumes, as follows:

Volume I – Technical Proposal

Volume II – Price Proposal

Each volume shall be submitted as a separate PDF file.

(a) The Government may hold discussions with offerors that submit proposals determined to be within the competitive range in accordance with FAR 15.306(c). The Contracting Officer is the only individual authorized to conduct discussions.

(b) Discussions may allow offerors to revise proposals to more fully satisfy solicitation requirements.

(c) The Government may award a contract without discussions, so initial proposals should be submitted on the most favorable terms.

L.4 VOLUME I - TECHNICAL PROPOSAL

The Technical Proposal must demonstrate compliance with all requirements in Section C. The Government will evaluate Technical Proposals on an Acceptable/Unacceptable basis under FAR 15.101 2 (LPTA).

L.4.1 Minimum Content

The Technical Proposal shall provide clear, direct evidence addressing each LPTA factor below. Narrative description alone is insufficient; verifiable documentation is required. Offerors shall provide the following:

Factor 1 - Heavy Weather Mooring Plan Compliance

- Draft Heavy Weather Mooring Plan Meeting Section C 9
- Mooring line calculations compliant with UFC 4 159 03
- Engineering certification from a licensed Professional Engineer
- Proposed bollard layout and SWL ratings
- Passing vessel analysis, when applicable

Factor 2 - Water Depth and Dredging Compliance

Offerors shall submit:

- Hydrographic soundings (within 6 months) meeting Section C 8, or
- A complete dredging plan including permits, timeline, and contractor commitments

Factor 3 - Pier Apron, Access, and Facility

Readiness Documentation demonstrating:

- Pavement load capacity (425 PSF minimum)
- Ability to support HS 20 44 vehicles
- Ramp landing area free of obstructions
- Parking meeting Section C 5(A)(2)
- Accommodation ladder landing platform
- Sufficient pier apron dimensions

Factor 4 - Port Services Availability

Provide letters of commitment or evidence of availability for:

- Ship repair facilities (three or more)
- Pilots
- Tugs
- Oily waste and approved OSRO
- Bunkering services

Factor 5 - Insurance and Permits

- Evidence of required insurance (or letter committing to provide before vessel placement)
- Facility ownership/lease documentation required under Section H.9

L.4.2 Format Restrictions

- Maximum length: No page limit, but offerors are encouraged to be concise
- Font: 11 point minimum
- Page size: 8.5" x 11"

SECTION M - EVALUATION FACTORS FOR AWARD

M.1 BASIS FOR AWARD

The Government intends to award a single Firm-Fixed-Price, Indefinite-Delivery Indefinite-Quantity (IDIQ) contract to the Lowest Price Technically Acceptable (LPTA) offeror in accordance with FAR 15.101-2.

Award will be made to the responsible offeror whose proposal:

1. Meets all Technical Acceptability requirements in Section M.3 (rated Acceptable), and
2. Offers the lowest evaluated price among all proposals rated Technically Acceptable.

No tradeoffs will be performed. Proposals rated Unacceptable under any non-price factor will be ineligible for award. The RFP contains two CLIN Structures and they are the five-year CLIN Structure and the ten-year CLIN Structure and an Offeror can propose its price using one or both of the CLIN Structures. However, Government shall make the award based on one CLIN Structure, and the said CLIN structure shall be the one that the Government determines to be in its best interest at the time of award. The Government reserves the right to award without discussions but may conduct discussions if deemed necessary (FAR 15.306).

M.2 EVALUATION FACTORS AND RATINGS Proposals will be evaluated under two factors:

1. Factor 1 – Technical Acceptability (Acceptable/ Unacceptable)
2. Factor 2 – Price

MI.2.1 Technical Acceptability Rating

Rating	Description
Acceptable	Proposal The proposal meets the minimum requirements of the RFP in respect to all the stipulated technical evaluation factor(s).
Unacceptable	The Proposal fails to meet the minimum requirements of the RFP in respect to the stipulated Evaluation Factor(s), or the proposal fails to meet any other material requirement of the RFP.

M.2.2 Price Evaluation

Price will be evaluated for:

- Completeness and fair and reasonableness.

Award will be made to the lowest-priced offeror whose technical evaluations are acceptable.

M.3 FACTOR 1 - TECHNICAL ACCEPTABILITY CRITERIA (acceptable/ unacceptable)

To be rated Acceptable, the proposal must demonstrate compliance with ALL the following requirements of Section C. Failure to meet any requirement results in an Unacceptable rating.

M.3.1 Heavy Weather Mooring Plan

Offeror must provide:

- a. Draft Heavy Weather Mooring Plan compliant with Section C-9
- b. Mooring analysis per UFC 4-159-03 (130 mph sustained wind minimum)
- c. Mooring calculations showing required factors of safety
- d. Passing vessel analysis (if layberth is within 1,000 feet of a channel)
- e. Drawings sealed by a licensed Professional Engineer
- f. Documentation of bollard safe working loads (SWL)

M.3.2 Water Depth and Dredging

Offeror must provide either:

- a. Recent (≤ 6 months) multi-beam soundings meeting Section C-8 or
- b. A credible dredging plan including:

- Identified dredging contractor
- Dredging schedule aligned with contract start date
- Required permits (or documented evidence of pending approvals)
- Post-dredging survey plan

M.3.3 Pier Apron, Access, and Ramp Requirements

Acceptability requires:

- Apron load ratings meeting 425 psf minimum
- HS-20-44 truck access throughout
- Ramp landing area clear of obstructions
- Adequate staging area
- Adequate parking meeting distance and access requirements
- Accommodation ladder landing capability

M.3.4 Port Services Availability (C-6)

Offeror must submit:

- Letters from at least three ship repair facilities within 30 driving miles
- Pilotage service availability
- Tug service availability within 120 minutes
- Bunkering service (or barge delivery) availability
- Oily waste disposal service availability
- OSRO within 2-hour waterborne transit

M.3.5 Insurance and Facility Rights

Offeror must submit:

- Proof of required insurance (H.4), or
- Letter of commitment to provide insurance before vessel arrival
- Lease or title demonstrating legal right to use facility (H.9)

M.4 - PRICE EVALUATION Price will

be evaluated based on:

1. Total evaluated price of all FFP CLINs, plus
2. Estimated reimbursable utility amounts, plus
3. Applicable optional CLIN pricing if exercised for evaluation purposes

Price evaluation does not consider technical superiority.

Award will be made to the lowest total evaluated price among offerors rated Technically Acceptable.

M.5 RESPONSIBILITY DETERMINATION

The The resultant contract award shall not be made to an offeror who is not determined to be responsible pursuant to FAR Part 9.

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